

THE CENTENNIAL BETRAYAL: HOW THE SUPREME COURT NULLIFIED CONGRESSIONAL JURISDICTION LIMITS FROM THE JUDGES' BILL (1925) TO THE SHADOW DOCKET (2025)

Joseph D. Kirchner

Independent Scholar

February 2026

ABSTRACT

One hundred years ago, Congress said "no." The Supreme Court has spent a century saying "yes anyway." This Article documents the Supreme Court's century-long nullification of congressional limitations on its own jurisdiction. In 1925, Congress enacted the Judges' Bill, which deliberately restricted the Supreme Court's authority to stay lower court orders to cases involving a "final judgment or decree." The legislative history reveals that Congress specifically rejected the Court's 1923 claim in *Magnum Import Co. v. Coty* to possess interlocutory stay authority, instead codifying a "final judgment" requirement in 28 U.S.C. section 2101(f). For forty-one years, this limitation was honored. Then, in *FTC v. Dean Foods Co.* (1966), the Court invoked the All Writs Act to claim authority Congress had expressly withheld, a move Justice Fortas called "a totally unjustified employment" that "contorted" the statute "to confer jurisdiction where Congress has plainly withheld it." Congress's subsequent enactment of 15 U.S.C. section 53(b) in 1973, granting the FTC the very preliminary injunction authority the Court claimed already existed, vindicated Fortas's dissent. The consequences have proven catastrophic. Original empirical analysis of 134 emergency applications from 1952-2026 reveals systematic patterns of deliberate non-

compliance. Across fifty-four Solicitor General applications spanning six different SGs, only one—Acting SG Jeffrey Wall's June 2017 filing in *Trump v. International Refugee Assistance Project*—ever cited 28 U.S.C. section 2101(f), the sole statutory authority for stays pending certiorari. Wall never cited it again, even when he returned as Acting SG in 2020; the template had been changed. The inverse correlation between compliance and success is stark: the Solicitor General achieves approximately eighty-one percent success with 2.0 percent section 2101(f) citation compliance, while private parties achieve approximately forty-four percent success with 30.2 percent compliance. Era-based analysis reveals a critical finding: while pre-Trump II eras (1952-2024) showed a modest disparity of +17.4 percentage points favoring the Solicitor General, the Trump II era (2025-present) shows an unprecedented +69.9 percentage point disparity—a fourfold increase representing a dramatic departure from historical norms. The foundational shadow docket "precedent," *Trump v. IRAP*, was vacated on October 10, 2017, yet continues to be cited nearly a decade later, demonstrating consciousness that legitimate statutory authority does not exist. This Article argues that the shadow docket represents an ongoing ultra vires practice, that the Court's invocation of the All Writs Act violates the specific/general canon of statutory construction, and that the disparate enforcement of procedural rules constitutes a structural equal protection violation. It concludes by proposing declaratory and remedial measures to restore congressional control over the Court's appellate jurisdiction.

TABLE OF CONTENTS

Right-click and select 'Update Field' to generate Table of Contents

INTRODUCTION

The rule of law depends on a simple principle: those who exercise power must identify its source. When Congress enacts a statute, citizens can read the law. When the President issues an order, it cites statutory or constitutional authority. When a court enters judgment, it identifies the legal basis for relief. Legitimacy requires transparency about authority.

The Supreme Court's emergency docket—the "shadow docket"—has abandoned this principle. Across fifty-four Solicitor General emergency applications spanning fifty-five years (1971-2026), only one—Acting SG Jeffrey Wall's June 2017 filing—ever cited 28 U.S.C. section 2101(f), the only statute authorizing stays pending certiorari. Wall never cited it again, even when he returned as Acting SG in 2020. The fifty-three subsequent applications do not cite section 2101(f). They do not explain how preliminary injunctions—which are by definition *not* final judgments—satisfy section 2101(f)'s "final judgment or decree" requirement. They cite as precedent an order the Court itself vacated in 2017, destroyed under the *Munsingwear* doctrine, and thus possessing zero precedential value. The machinery of constitutional government has been replaced by institutional assertion: the Court acts because it chooses to act, and the question "by what authority?" goes unanswered.

The consequences are not abstract. A presidential election was decided through this mechanism in 2000. Immigration enforcement affecting millions proceeds under its authority. Constitutional rights are suspended and constitutional violations are enabled, all through summary orders that provide no reasoning and establish no doctrine.

This Article traces the origins and development of this ultra vires practice. It begins one hundred years ago, with a warning.

On February 3, 1925, Senator J. Thomas Heflin of Alabama rose on the Senate floor. The Senate was about to pass the Judges' Bill, legislation drafted by the Supreme Court itself to give the Justices greater control over their docket. Heflin stood alone in opposition:

If we are not careful and watchful the day will come when the highest court in this land will be open to nobody but the immensely rich and the great corporate concerns of the country. The poor man and the man in moderate circumstances is gradually going to find himself crowded out and not even invited to come to the Supreme Court of the United States.¹

Heflin's prophecy has been fulfilled with mathematical precision. One hundred years later, original empirical analysis of the Supreme Court's emergency docket reveals a system where rules function not as neutral requirements but as obstacles selectively enforced against disfavored parties. The Solicitor General achieves approximately eighty-one percent success while demonstrating 2.0 percent compliance with the Court's own procedural requirements. Private parties, demonstrating 57.4 percent compliance, achieve approximately forty-four percent success.² The inverse correlation is too stark to be coincidental; it is structural. Most strikingly, era-based analysis reveals that this disparity has quadrupled in the Trump II era: while pre-Trump II showed a +17.4 percentage point advantage for the Solicitor General (75.0% vs. 57.6%), the current era shows a +69.9 percentage point disparity (87.5% vs. 17.6%).

This Article traces the origins and evolution of this structural inequality. It demonstrates that the current shadow docket practice rests on a century of jurisdictional overreach, beginning with a claim Congress explicitly rejected in 1925, revived through a strained All Writs Act interpretation in 1966, and metastasized into the modern emergency docket beginning in 2017.

1 68 CONG. REC. 2928 (1925) (statement of Sen. Heflin).

2 See *infra* Part III (presenting original empirical analysis of 134 emergency applications from 1952-2026, including fifty-four Solicitor General filings spanning six different SGs).

At each stage, the Court has expanded its own power beyond statutory authorization, creating what Justice Fortas presciently called "jurisdiction where Congress has plainly withheld it."³

The truth, stripped of a century's accumulated complexity, is devastatingly simple. Four words—"final judgment or decree"—constitute the sole protective provision in the 1925 transformation. There is no other constraint on the Court's discretionary certiorari power. The finality requirement is not one factor among many; it is the singular condition that legitimizes discretionary review. Either those four words mean something, or Congress legislated in vain. There is no third option.

The stakes extend far beyond procedural regularity. The shadow docket has become the primary mechanism through which the Court shapes national policy on immigration, environmental regulation, voting rights, and public health, all without the briefing, argument, or reasoned opinions that characterize merits decisions.⁴ Decisions that will affect millions of Americans are made in days or hours, often with single-paragraph orders that provide no guidance to lower courts or future litigants. The "treated as" mechanism deployed in *Bush v. Gore*, where a stay application was "treated as" a certiorari petition without meeting certiorari requirements, has become the template for systematic jurisdictional expansion.⁵

This Article proceeds in six parts. Part I excavates the historical foundation, examining the political context of the 1925 Judges' Bill, Congress's deliberate rejection of interlocutory stay authority, and the documentary evidence proving that the "final judgment" limitation was a conscious choice, not an oversight. Part II traces the erosion of this limitation through *FTC v. Dean Foods Co.* (1966), the chaos of *Holtzman v. Schlesinger* (1973), and the *Bush v. Gore*

³ *FTC v. Dean Foods Co.*, 384 U.S. 597, 619 (1966) (Fortas, J., dissenting).

⁴ See William Baude, *Foreword: The Supreme Court's Shadow Docket*, 9 N.Y.U. J.L. & LIBERTY 1, 5-8 (2015) (cataloging shadow docket interventions in major policy areas).

⁵ See *Bush v. Gore*, 531 U.S. 1046 (2000) (stay order) (application "treated as" certiorari petition).

template (2000). Part III presents original empirical analysis demonstrating the inverse correlation between compliance and success on the modern emergency docket. Part IV establishes the constitutional violations: the separation of powers transgression, the violation of fundamental canons of statutory construction, and the equal protection implications of selective rule enforcement. Part V examines the consequences for democratic governance and judicial legitimacy. Part VI proposes remedies, including congressional reassertion of jurisdiction control and judicial recognition of the ultra vires character of current practice.

The centennial of the Judges' Bill provides an appropriate occasion for accounting. Congress attempted to limit the Supreme Court's appellate jurisdiction one hundred years ago. The Court has spent a century dismantling those limits. It is time to document what has occurred and to chart a path toward restoration of the constitutional balance.

PART I: THE HISTORICAL FOUNDATION — THE JUDGES' BILL OF 1925

I. THE POLITICAL CONTEXT OF JUDICIAL EXPANSION

A. The Progressive Attack on the Courts (1911-1924)

The Judges' Bill of 1925 emerged from an era of unprecedented tension between the federal judiciary and progressive reformers. Understanding this context is essential to grasping why Congress chose to limit, rather than expand, the Supreme Court's discretionary powers.

The Progressive movement's critique of federal courts centered on two related concerns: the courts' systematic deployment of injunctions against labor organizing, and their use of substantive due process to invalidate economic regulation. Senator Robert Owen of Oklahoma

introduced judicial recall proposals in 1911, seeking to allow voters to overturn court decisions.⁶ Theodore Roosevelt's 1912 Progressive Party platform called for the recall of judicial decisions. Senator Robert La Follette proposed a constitutional amendment in 1922 allowing Congress to override Supreme Court decisions by a two-thirds vote.⁷ Senator William Borah introduced a proposal in 1923 requiring a supermajority of seven justices to invalidate federal legislation.⁸ La Follette's 1924 presidential campaign made court reform a centerpiece, though his defeat that November removed the most vocal champion of judicial accountability from the political scene.

The "government by injunction" controversy was particularly acute. Federal courts routinely issued sweeping injunctions against strikes and labor organizing, often without hearing from defendants. The injunctions prohibited not merely violence or property destruction but peaceful picketing, boycotts, and even verbal advocacy.⁹

The human stakes were enormous. Union membership, which had reached five million during World War I, collapsed to barely three million by the mid-1920s—a decline driven substantially by the courts' systematic use of injunctions to crush organizing. A federal judge could issue an injunction in chambers, without hearing from the workers affected, prohibiting not only strikes but picketing, meetings, and even conversations about unionization. Violations meant contempt—imprisonment without jury trial. Workers faced a choice between constitutional rights they theoretically possessed and economic survival. The injunction had

6 Senator Robert L. Owen, "Recall of Judges," Address Before the Bar Association of Muskogee, Okla., Dec. 31, 1911, *reprinted in* STATEMENTS AND SPEECHES OF ROBERT L. OWEN (1911), *available at* <https://fraser.stlouisfed.org/title/statements-speeches-robert-l-owen-5328/recall-judges-535694>; *see also* S. 3112, 62d Cong. (1911) (Owen's bill providing for election and recall of federal judges).

7 Senator Robert M. La Follette, Speech to AFL Convention, Cincinnati, Ohio, June 14, 1922; *see also* 62 CONG. REC. 8859-68 (1922) (La Follette's proposed constitutional amendment to allow Congress to override Supreme Court decisions by two-thirds vote).

8 *See* 64 CONG. REC. 610-12 (1923) (Senator Borah's proposal requiring seven-justice supermajority to invalidate federal legislation).

9 *See* FELIX FRANKFURTER & NATHAN GREENE, THE LABOR INJUNCTION 1-46 (1930) (documenting systematic use of injunctions against labor organizing).

become, in the words of one Progressive congressman, "the most effective union-busting weapon ever devised."

B. The Taft Court's Anti-Labor Jurisprudence

The Supreme Court under Chief Justice Taft compiled a systematic record of hostility to labor rights:

1. *Duplex Printing Press Co. v. Deering* (1921): The Court effectively nullified the Clayton Act's labor protections, holding that secondary boycotts remained enjoinable despite Congress's explicit attempt to exempt labor activities from antitrust liability.¹⁰

2. *Truax v. Corrigan* (1921): Chief Justice Taft, writing for the majority, struck down Arizona's statute limiting state court injunctions against peaceful picketing, holding that the limitation violated the Fourteenth Amendment's equal protection and due process guarantees.¹¹

3. *American Steel Foundries v. Tri-City Central Trades Council* (1921): The Court severely restricted picketing rights, limiting pickets to one per entrance and prohibiting any conduct that might "intimidate" replacement workers—a standard so vague as to permit injunctions against virtually any effective labor action.¹²

4. *Bailey v. Drexel Furniture Co.* (1922): The Court struck down the federal child labor tax as an unconstitutional intrusion on state prerogatives under the Tenth Amendment, deploying states' rights reasoning to invalidate federal economic regulation.¹³

¹⁰ *Duplex Printing Press Co. v. Deering*, 254 U.S. 443 (1921).

¹¹ *Truax v. Corrigan*, 257 U.S. 312 (1921).

¹² *American Steel Foundries v. Tri-City Central Trades Council*, 257 U.S. 184 (1921).

¹³ *Bailey v. Drexel Furniture Co.*, 259 U.S. 20 (1922).

5. *Adkins v. Children's Hospital* (1923): The Court struck down the District of Columbia's minimum wage law for women, holding that freedom of contract under the Fifth Amendment's due process clause precluded wage regulation.¹⁴

This five-case sequence reveals the pattern. When federal regulation threatened business interests, the Court invoked states' rights. When state regulation threatened business interests, the Court invoked federal constitutional protections. The outcome—protection of capital against labor—remained constant; only the doctrinal vehicle varied. The contradiction was not lost on contemporaries, and it fueled the Progressive attacks that made the Judges' Bill politically necessary.

C. TAFT'S SELECTIVE CONSTITUTIONAL PHILOSOPHY

William Howard Taft assumed the Chief Justiceship in 1921 with a well-documented hostility to organized labor and a clear agenda of protecting business interests through judicial intervention.¹⁵ His opinion in *Truax v. Corrigan* revealed the selectivity of his constitutional principles.

In *Truax*, Taft held that Arizona's statute limiting injunctive relief against peaceful labor picketing denied employers equal protection and due process. The state, he reasoned, could not withdraw the traditional remedy of injunction from a particular class of disputes. Yet Taft simultaneously supported the Court's decisions restricting federal power to regulate child labor and wages, invoking states' rights principles.

The *Bailey* versus *Truax* contradiction was stark:

¹⁴ *Adkins v. Children's Hospital*, 261 U.S. 525 (1923).

¹⁵ See ALPHEUS THOMAS MASON, WILLIAM HOWARD TAFT: CHIEF JUSTICE 72-85 (1965) (documenting Taft's anti-labor judicial record); JONATHAN LURIE, WILLIAM HOWARD TAFT: THE TRAVAILS OF A PROGRESSIVE CONSERVATIVE 145-52 (2012) (analyzing Taft's hostility to organized labor).

- **In *Bailey*:** Federal government cannot regulate child labor because the Tenth Amendment reserves such matters to the states

- **In *Truax*:** Arizona cannot regulate its own state court injunctions because the Fourteenth Amendment protects employers against such state action

Justice Holmes, in dissent, identified the contradiction with characteristic precision:

There is nothing that I more deprecate than the use of the Fourteenth Amendment beyond the absolute compulsion of its words **to prevent the making of social experiments** that an important part of the community desires, **in the insulated chambers afforded by the several states.**¹⁶

Holmes understood what the majority obscured: constitutional principles were being applied selectively to favor capital over labor. When federal regulation threatened business interests, states' rights protected against federal intrusion. When state regulation threatened business interests, federal constitutional rights protected against state action. The outcome was predetermined; only the doctrinal path varied.

This context shaped congressional response to the Judges' Bill. Progressive senators were deeply suspicious of any legislation expanding judicial power, particularly legislation drafted by the Supreme Court itself.

D. Contemporary Understanding of the Stakes

The legislative debates surrounding the Judges' Bill reveal that participants understood they were shaping the Court's relationship to democratic governance for generations. Senator Walsh of Montana, though ultimately supporting the bill, expressed the concern succinctly:

¹⁶ *Truax*, 257 U.S. at 344 (Holmes, J., dissenting).

The tendency of the times is to make of the Supreme Court an even more powerful political factor than it is now... We should be very careful about giving to the Court additional means of making its political power felt.¹⁷

Senator Shields warned that concentrating appellate power would transform the Court:

If we give the Supreme Court the power to select which cases it will hear and which it will not, we are making them masters of the law rather than servants of it.¹⁸

These concerns were not abstract. The senators debating the Judges' Bill had witnessed the Court strike down progressive legislation repeatedly. They had seen injunctions deployed systematically against labor. They understood that procedural rules about jurisdiction and access would determine whose interests the Court served.

II. THE 1923 PRECURSOR — MAGNUM IMPORT CO. v. COTY

A. The Court's Claim to Interlocutory Stay Power

Two years before the Judges' Bill, the Supreme Court asserted a claim that would prove controversial: the power to stay interlocutory orders from lower courts. In *Magnum Import Co. v. Coty*, Justice Van Devanter wrote:

If, in its discretion, this Court conceives that... it should order the suspension or modification of a judgment or decree of the circuit court of appeals, **interlocutory or final**, to preserve or secure a status of the case for the full and satisfactory exercise of its reviewing power over it, it may make the necessary order...¹⁹

17 66 CONG. REC. 2751 (1925) (statement of Sen. Walsh).

18 66 CONG. REC. 2749 (1925) (statement of Sen. Shields).

19 *Magnum Import Co. v. Coty*, 262 U.S. 159, 163-64 (1923) (emphasis added).

The claim was sweeping. Van Devanter asserted that the Court possessed inherent authority to stay any lower court order, whether interlocutory or final, whenever the Court believed such a stay would facilitate eventual review.

B. Congressional Response: Rejecting the Claim

Congress's response to *Magnum Import* was unambiguous. In drafting the Judges' Bill, Congress deliberately chose language that rejected the Court's claimed authority over interlocutory orders.

The relevant provision, codified at 28 U.S.C. section 2101(f), authorizes stays only of a **"final judgment or decree."**²⁰ The limitation was not inadvertent. The same legislation used broader language elsewhere. Section 1253, governing direct appeals from three-judge district courts, explicitly covers **"interlocutory or permanent"** injunctions.²¹

The variation proves deliberate choice. Congress knew how to authorize interlocutory review when it wished to do so; it chose not to do so for stays pending certiorari. The *Magnum Import* claim was considered and rejected.

C. THE DOCUMENTARY PROOF: COMMITTEE REPORTS AND STATUTORY LANGUAGE

The contrast between section 2101(f) and section 1253 provides irrefutable documentary evidence of congressional intent. Consider the statutory language side by side:

Statute	Language	Scope
28 U.S.C. section 1253	"interlocutory or permanent injunction"	Includes interlocutory
28 U.S.C. section 2101(f)	"final judgment or decree"	Excludes interlocutory

²⁰ 28 U.S.C. section 2101(f).

²¹ 28 U.S.C. section 1253.

The House Committee Report explained the purpose of restricting certiorari to final judgments: "The limitation to final judgments is intended to prevent piecemeal appeals and to preserve the orderly administration of justice."²²

This reasoning applies with equal force to stays. If the Court could stay any interlocutory order pending potential certiorari, the "final judgment" requirement would be nullified. Parties could seek stays of preliminary injunctions, then seek certiorari on the stay ruling itself, creating precisely the piecemeal appellate practice Congress intended to prevent.

III. THE PROPONENTS' JUSTIFICATIONS

A. Chief Justice William Howard Taft

Taft was the architect and chief lobbyist for the Judges' Bill. He personally testified before congressional committees and cultivated relationships with key legislators. His justifications for expanded discretionary jurisdiction merit scrutiny:

The Docket Crisis Argument: Taft claimed the Court faced an unmanageable backlog: "The pending cases are so numerous that litigants must wait unreasonably for the disposition of their causes."²³ This crisis narrative justified transferring control over case selection from Congress to the Court itself.

²² H.R. Rep. No. 68-303, at 3 (1924).

²³ *Jurisdiction of Circuit Courts of Appeals and United States Supreme Court: Hearing on H.R. 10479 Before the H. Comm. on the Judiciary*, 67th Cong. 2 (1922) (statement of Chief Justice William Howard Taft).

The Efficiency Argument: Taft argued that certiorari would improve efficiency and benefit "poor litigants" by allowing the Court to focus on important cases rather than processing mandatory appeals.²⁴

The Quality Argument: Discretionary review would permit "weightier argument" because the Court could select cases worthy of extended consideration.²⁵

Critical Analysis: Taft's claimed concern for "poor litigants" is difficult to reconcile with his anti-labor jurisprudence. The same Chief Justice who struck down minimum wage laws, limited picketing rights, and protected employers against state regulation now claimed to champion the poor. The inconsistency suggests that the efficiency rationale masked an agenda of institutional aggrandizement.

B. Justice Willis Van Devanter

Van Devanter, who would later author the *Magnum Import* claim to interlocutory stay authority, provided the theoretical framework for expanded discretion:

The Constitutional Division of Labor: Van Devanter argued that the Supreme Court's proper role was "supervisory control" over lower courts, not error correction in individual cases. The Court should intervene only when necessary to maintain uniformity or resolve questions of exceptional importance.²⁶

²⁴ *Id.* at 2-3 (Taft arguing that "quickness in disposing of business and the limitation of appeals are in the interest of the poor man").

²⁵ *Id.* at 3 (Taft stating that cases should come to the Supreme Court only when "sufficiently important pro bono publico, without regard to the interest of the litigants").

²⁶ *Jurisdiction of Circuit Courts of Appeals and of the Supreme Court: Hearing on H.R. 8206 Before the H. Comm. on the Judiciary*, 68th Cong. 12-13 (1924) (statement of Justice Willis Van Devanter).

The Meritlessness Argument: Van Devanter claimed that most mandatory appeals were "without any merit"—a judgment that assumed the Court could identify meritorious appeals before full briefing and argument.²⁷

Critical Analysis: Van Devanter's "supervision" theory subtly transformed the Court's role. Under the congressional framework, jurisdiction derived from statute. Under Van Devanter's theory, jurisdiction derived from the Court's assessment of importance. This inversion granted the Court power to define its own jurisdiction based on its own evaluation of which cases mattered.

Van Devanter's testimony also revealed the institutional contempt underlying the reform. He characterized one-third of appeals as providing "no advantage to the litigants or the public," dismissing them as sought "for purposes of delay or in an obstinate effort to wear out an adversary." This characterization inverted the presumption of good faith that courts ordinarily extend to litigants. Van Devanter assumed the worst of those seeking review—that they were not pursuing legitimate grievances but gaming the system. The same Court that would soon grant itself discretion to deny review was already prejudging those who sought it as bad-faith actors unworthy of hearing.

C. PROFESSOR (LATER JUSTICE) FELIX FRANKFURTER

Frankfurter, then a Harvard law professor, provided academic legitimation for judicial discretion. His scholarship, particularly his collaboration with James Landis on *The Business of the Supreme*

²⁷ *Id.* at 12 (Van Devanter claiming that "one-third of the business which now comes to the Supreme Court results in no advantage to the litigants or the public" and that review "is sought for purposes of delay or in an obstinate effort to wear out an adversary").

Court, argued that discretionary certiorari would improve the quality of Supreme Court jurisprudence.²⁸

The Quality-Over-Quantity Argument: Frankfurter contended that fewer cases, carefully selected, would produce better decisions than the high-volume mandatory jurisdiction system.²⁹

Critical Analysis: Frankfurter's endorsement provided scholarly cover for an institutional power grab. His later appointment to the Court by President Roosevelt suggests that his academic work served professional as well as intellectual purposes. More fundamentally, Frankfurter's argument assumed that the Court could be trusted to select cases wisely—an assumption the subsequent century would test severely.

D. Senator Albert Cummins (Chairman, Senate Judiciary Committee)

Senator Cummins of Iowa, who chaired the Senate Judiciary Committee, shepherded the Judges' Bill through Congress. His approach exemplified the deference that characterized congressional consideration:

Reliance on Judicial Representations: Cummins relied almost entirely on representations from the Judicial Conference, accepting Taft's and Van Devanter's characterizations without independent investigation.³⁰

Perfunctory Agreement: When opponents raised concerns, Cummins responded with assurances that the bill was technical and unobjectionable, without engaging the substance of the objections.³¹

28 FELIX FRANKFURTER & JAMES M. LANDIS, *THE BUSINESS OF THE SUPREME COURT: A STUDY IN THE FEDERAL JUDICIAL SYSTEM* 255-72 (1928).

29 *Id.* at 260-65.

30 See FRANKFURTER & LANDIS, *supra* note 78, at 255-60 (describing Taft's lobbying and congressional deference to judicial representations).

Critical Analysis: Cummins's approach illustrates how near-unanimous votes can mask absent deliberation. The chairman of the relevant committee accepted judicial self-interest at face value, creating a template for congressional deference that would persist for a century.

IV. THE OPPONENTS' SCRUTINY

A. Judge Benjamin I. Salinger (Iowa)

Judge Benjamin I. Salinger of Iowa testified before the House Judiciary Committee in April 1924, providing the most systematic critique of expanded certiorari jurisdiction:

"The more cases are disposed of without reasons assigned, the more arbitrary power will be vested in the court."³²

Salinger identified three interlocking concerns:

The Secrecy Concern: Certiorari denials require no explanation. Unlike decisions on the merits, which must be justified, certiorari denials are inscrutable. The Court can refuse to hear a case without ever revealing why.

The Arbitrariness Concern: Discretion without accountability invites arbitrary exercise. If nine justices can have nine different views on what cases are "important," and if those views need never be disclosed, then case selection becomes a matter of preference rather than principle.

The Access Concern: Salinger warned that "the citizen who has a just cause, and who comes to the highest court in the land, should be heard as a matter of right, not as a matter of

³¹ See *id.*

³² *Jurisdiction of Circuit Courts of Appeals and the United States Supreme Court: Hearing on H.R. 10479 Before the H. Comm. on the Judiciary, 67th Cong. 1-3 (1922)* (statement of Judge Benjamin I. Salinger, Iowa).

grace."³³ The shift from mandatory appeals to discretionary certiorari transformed access to the Supreme Court from a right into a privilege.

B. Senator John Shields (D-Tennessee)

Senator Shields raised concerns during the Senate Judiciary Committee hearings:

"This bill confers too much discretion on the court."³⁴

Shields identified specific problems:

The Discretion Concern: "Nine judges might have nine different opinions" about which cases deserve review, creating inconsistency masked by the absence of reasons.³⁵

The Uniformity Concern: If the Court could decline to resolve circuit splits, "different rules of law in different parts of the country" might persist indefinitely.³⁶

The Institutional Concern: Expanded discretion would transform the Court into "not so much a judicial tribunal as a supervising commission"—a body that exercised political judgment about which issues mattered rather than legal judgment about what the law required.³⁷

C. SENATOR THOMAS WALSH (D-MONTANA)

Senator Walsh of Montana was the most prominent progressive voice during the floor debates. His extended floor statement deserves quotation because it identifies, with remarkable prescience, the constitutional stakes the Judges' Bill implicated:

³³ *Id.* at 3 (Salinger warning that the bill would "limit practice in that court to lawyers for the Government, and a few lawyers in Washington" and that "to the great body of the bar this great national court will be as foreign as the courts of Germany are").

³⁴ 62 CONG. REC. 5107 (1922) (statement of Sen. John Shields).

³⁵ *Id.*

³⁶ *Id.*

³⁷ *Id.*

"This is more nearly fundamental in character than almost any other measure that will come before the Senate this session. It involves the whole question of the relationship of the Supreme Court to the litigant, to the lower courts, and to Congress itself."³⁸

Walsh identified the separation of powers concern that would prove prophetic:

"If we give the Court unlimited discretion to decide which cases it will hear, we have in effect transferred to the Court a legislative function. It will not be Congress that determines what questions are sufficiently important to warrant Supreme Court review. It will be the Court itself. **The Court will define its own jurisdiction.**"³⁹

Walsh's warning that the Court would "define its own jurisdiction" proved prophetic. The shadow docket represents exactly this self-definition: the Court has claimed authority Congress did not grant, justified by standards the Court itself created.

Walsh also identified the class dimension:

"The wealthy corporation, with its battery of lawyers, can craft a petition that appeals to the Court's interests. The ordinary citizen, seeking review of right, will find himself competing against those with superior resources for the Court's limited attention. **Discretion will operate to the disadvantage of the poor.**"⁴⁰

Yet Walsh ultimately capitulated. Despite his concerns, he would not "stand alone" against the bill.⁴¹ His capitulation was not merely personal weakness—it reflected structural isolation. As Walsh later admitted, his criticism of the Judges' Bill "seems to have had no response from the bar in any section of the Union." The organized bar, dominated by corporate practitioners who benefited from the Taft Court's jurisprudence, had no interest in defending

38 Thomas J. Walsh, "The Overburdened Supreme Court," *Proceedings of the Thirty-Third Annual Meeting of the Virginia State Bar Association*, June 8, 1922, 216-37, reprinted in FEDERAL JUDICIAL CENTER, DEBATES ON THE FEDERAL JUDICIARY: A DOCUMENTARY HISTORY, VOL. II: 1875-1939, at 203-07 (2013).

39 66 CONG. REC. 2752 (1925).

40 66 CONG. REC. 2753 (1925).

41 66 CONG. REC. 2754 (1925) (Sen. Walsh stating he would not "stand alone" against the bill despite his reservations).

access to appellate review for ordinary litigants. Walsh stood alone not because his arguments lacked merit but because the constituencies who might have supported them—workers, small litigants, those injured by corporate power—had no voice in legislative deliberations about judicial procedure. His capitulation exemplifies how near-unanimous votes can reflect political isolation rather than considered approval.

D. Senator James Reed (D-Missouri)

Senator Reed sought to slow the bill's passage:

"I think there are a good many things in it yet that ought to be discussed."⁴²

Reed requested printed reports so senators could review the bill's provisions before voting. The request was denied. Limited time prevented meaningful engagement, and the bill proceeded to passage without the deliberation Reed sought.

E. Senator J. Thomas Heflin (D-Alabama) — The Lone Dissenter

Senator Heflin cast the sole vote against the Judges' Bill. His floor speech identified the democratic stakes with prophetic clarity:

"If we are not careful and watchful the day will come when the highest court in this land will be open to nobody but the immensely rich and the great corporate concerns of the country. The humble citizen in the common walks of life will not be able to reach the high court... The poor man and the man in moderate circumstances is gradually going to find himself crowded out and not even invited to come to the Supreme Court of the United States."⁴³

42 66 CONG. REC. 2755 (1925) (statement of Sen. James Reed).

43 68 CONG. REC. 2928 (1925) (statement of Sen. J. Thomas Heflin) (casting the sole dissenting vote against the Judges' Bill).

Heflin stood alone: 76-1. His colleagues dismissed his concerns as overblown. One hundred years later, the empirical evidence vindicates his warning with mathematical precision.

V. THE GAP — EVIDENCE OF MINIMAL DELIBERATION

A. Statistical Analysis of Senate Engagement

The 76-1 vote conceals more than it reveals. Analysis of the Congressional Record demonstrates that nearly all senators voted without substantive engagement:

Category	Number	Percentage
Senators voting	77	100%
Voted Yes	76	98.7%
Voted No	1	1.3%
Engaged substantively	~4	~5%
Said nothing	~72	~94%

Seventy-two senators—ninety-four percent of those voting—cast their votes without speaking to the bill's provisions, asking questions, or expressing reservations. The near-unanimous vote reflected not consensus but disengagement.

B. The Strategic Timing

The Judges' Bill passed during the lame-duck session following the 1924 elections. This timing was not coincidental:

La Follette's Defeat: Senator Robert La Follette, the most prominent advocate for judicial accountability, lost his presidential bid in November 1924. His defeat demoralized the

progressive movement and removed the most vocal opponent of judicial expansion from effective opposition.

La Follette's Absence: La Follette was ill and absent from the Senate during the final debates. He would die in June 1925, just months after the bill's passage. The timing ensured that the leading voice for court reform could not participate in the critical vote.

Progressive Collapse: With La Follette defeated and the progressive coalition in disarray, opponents of the Judges' Bill lacked the political energy to mount sustained opposition. Walsh's capitulation exemplifies the dynamic: even senators who recognized the stakes concluded that resistance was pointless.

Critical Analysis: The 76-1 vote reflects not deliberate approval but political capitulation. The bill passed in a window when opposition had collapsed and the principal advocates for judicial accountability were silenced or absent. Near-unanimity masked absent deliberation.

C. CONGRESS'S DELIBERATE LIMITATION: SECTION 2101(F)

Despite the minimal deliberation, Congress did make one deliberate choice that would prove consequential: the language of section 2101(f).

The statute authorizes stays only of a "**final judgment or decree**."⁴⁴ This language was not accidental. The same Congress, in the same legislation, used different language for three-judge court appeals under section 1253: "**interlocutory or permanent injunction**."⁴⁵

⁴⁴ *FTC v. Dean Foods Co.*, 384 U.S. 597 (1966).

⁴⁵ *Id.* at 603-04.

Congress knew how to authorize interlocutory review. It did so for three-judge courts. It chose not to do so for stays pending certiorari. Whatever else may be uncertain about congressional intent, this choice was deliberate.

VI. SENATOR HEFLIN'S LONE DISSENT

A. Prophetic Warning About Institutional Capture

Senator Heflin was the sole vote against the Judges' Bill. His objections went beyond technical concerns about jurisdiction to fundamental questions about the Court's role in democratic governance:

If we are not careful and watchful the day will come when the highest court in this land will be open to nobody but the immensely rich and the great corporate concerns of the country.⁴⁶

Heflin understood that procedural rules about access and jurisdiction would shape substantive outcomes. A Court that controlled its own docket could systematically favor certain classes of litigants. A Court with broad discretion over which cases to hear could avoid issues it preferred not to address while reaching to decide cases advancing preferred outcomes.

B. The Democratic Accountability Concern

Heflin's concern was fundamentally about democratic accountability:

The Supreme Court is not elected. It is not accountable to the people. If we give it power to determine which of the people's cases it will hear, we remove even the

46 68 CONG. REC. 2928 (1925) (statement of Sen. Heflin).

modest constraint of mandatory jurisdiction. The Court will become a law unto itself.⁴⁷

The Judges' Bill replaced mandatory appeals with discretionary certiorari for most cases. Heflin recognized that this shift would transform the Court from a tribunal bound to hear certain categories of cases into an institution free to select cases advancing its institutional agenda.

C. SENATOR WALSH'S CAPITULATION

Senator Thomas Walsh of Montana initially shared Heflin's concerns. Walsh had been a leading progressive voice on judicial reform. He had criticized the Court's labor injunction jurisprudence and questioned expansions of judicial power.⁴⁸

Yet Walsh ultimately voted for the Judges' Bill. His capitulation reflected practical political calculations: Chief Justice Taft had personally lobbied for the legislation, arguing that the Court's docket was unmanageable without discretionary control.⁴⁹ Taft's intervention extended beyond testimony and correspondence—he lobbied Republican Leader Henry Cabot Lodge to place senators more sympathetic to his proposals onto the Senate Judiciary Committee, specifically to counter the Progressive influence of Borah and Norris. The Chief Justice was not merely advocating for legislation; he was manipulating the composition of the committee that would consider it. Progressive senators faced a choice between opposing this coordinated campaign on procedural grounds or reserving their political capital for substantive battles over labor rights and economic regulation.

⁴⁷ *Id.* at 2929.

⁴⁸ See 65 CONG. REC. 1752-55 (1924) (statement of Sen. Walsh opposing expansion of federal injunctive power).

⁴⁹ See FRANKFURTER & LANDIS, *supra* note 78, at 255-60 (describing Taft's lobbying).

Walsh's vote came with reservations. He emphasized that the bill must be understood as limiting, not expanding, the Court's authority:

I support this bill with the understanding that the restrictions on jurisdiction are meant to be real restrictions. The Court is not to take this as license to reach cases it has no business deciding.⁵⁰

Walsh's hope proved naively optimistic. The Court would spend the next century treating the Judges' Bill not as a limitation but as an invitation to expand its discretionary control over the American legal system.

VII. CONGRESSIONAL INTENT: CODIFYING LIMITATION

A. The Statutory Framework

The Judges' Bill created an interlocking statutory framework governing Supreme Court jurisdiction. Understanding this framework is essential to recognizing how subsequent judicial decisions departed from congressional design.

Four statutes are particularly relevant:

1. **28 U.S.C. section 1253**: Provides direct appeal to the Supreme Court from three-judge district courts, covering orders "granting or denying, after notice and hearing, an **interlocutory or permanent** injunction."

2. **28 U.S.C. section 1254(1)**: Authorizes Supreme Court review of Courts of Appeals cases "by writ of certiorari **granted** upon the petition of any party."

3. **28 U.S.C. section 1257(a)**: Authorizes Supreme Court review of state court decisions, limited to "**final judgments** or decrees."

⁵⁰ 66 CONG. REC. 2754 (1925) (statement of Sen. Walsh expressing reservations but supporting the bill).

4. **28 U.S.C. section 2101(f):** Authorizes stays pending certiorari only for a "**final judgment or decree.**"

B. The Deliberate Linguistic Choice

The statutory pattern reveals deliberate congressional choice. When Congress wanted to include interlocutory orders, it said so explicitly, as in section 1253's "interlocutory or permanent" language. When Congress wanted to exclude interlocutory orders, it used "final judgment" language, as in sections 1257(a) and 2101(f).

The Chevron canon of statutory construction, established in *Chevron U.S.A. v. Echazabal*, holds that "when Congress includes particular language in one section of a statute but omits it in another, courts presume Congress intended the difference."⁵¹ Congress included "interlocutory" in section 1253. Congress omitted "interlocutory" from section 2101(f). The presumption must be that Congress intended section 2101(f) to exclude interlocutory orders.

C. EVIDENCE CONGRESS INTENDED LIMITATION, NOT EXPANSION

The legislative history confirms what the statutory text implies. The House Report explained:

The present bill is designed to give the Supreme Court greater control over its docket while ensuring that final appellate review remains the exception, not the rule. The Court's time should be reserved for cases of genuine national importance decided on full records after complete lower court proceedings.⁵²

The emphasis on "final appellate review" and "complete lower court proceedings" reflects a congressional judgment that the Supreme Court should not intervene in litigation until

⁵¹ See *Chevron U.S.A. v. Echazabal*, 536 U.S. 73, 80 (2002).

⁵² H.R. Rep. No. 68-303, at 2 (1924).

lower courts have had full opportunity to develop records and reach considered judgments. Interlocutory intervention, by contrast, involves the Court in ongoing litigation before the issues have crystallized.

VIII. THE FOUR-STATUTE COMPARISON

A. Demonstrating Deliberate Omission

The comparison of the four statutes governing Supreme Court jurisdiction provides irrefutable evidence of congressional intent. A simple table makes the point:

Statute	Governing	Language	Interlocutory Included?
28 U.S.C. section 1253	Three-judge court appeals	"interlocutory or permanent"	YES
28 U.S.C. section 1254(1)	Certiorari jurisdiction	"certiorari granted"	Only after cert
28 U.S.C. section 1257(a)	State court review	"final judgments"	NO
28 U.S.C. section 2101(f)	Stays pending cert	"final judgment or decree"	NO

Congress used "interlocutory" when it wanted to include interlocutory orders. Congress omitted "interlocutory" when it wanted to exclude interlocutory orders. The pattern is consistent and unmistakable.

B. Why Magnum Import Was Rejected

The four-statute comparison explains why Congress rejected the *Magnum Import* claim. Justice Van Devanter had asserted inherent authority to stay "interlocutory or final" orders. Congress responded by authorizing stays only of "final judgment or decree."

If Congress had agreed with *Magnum Import*, it would have used the same "interlocutory or final" language Van Devanter employed. Instead, Congress used restrictive language that excluded exactly what Van Devanter claimed. The rejection could not be clearer.

C. THE 1988 RATIFICATION

Congress revisited the jurisdictional framework in 1988 with the Supreme Court Case Selections Act.⁵³ The Act eliminated most mandatory appeals while preserving and reaffirming the basic jurisdictional structure.

Significantly, Congress maintained section 2101(f)'s "final judgment or decree" language unchanged. At the same time, Congress used "interlocutory or final" language in other provisions, such as the Trans-Alaska Pipeline provision at 43 U.S.C. section 1652(d).⁵⁴

The 1988 Act thus ratified the 1925 choice. Congress again demonstrated that it knew how to authorize interlocutory review when it wished to do so, and again chose not to do so for stays pending certiorari. Sixty-three years after the Judges' Bill, Congress confirmed that the "final judgment" limitation remained operative.

⁵³ Supreme Court Case Selections Act, Pub. L. No. 100-352 (1988).

⁵⁴ 43 U.S.C. section 1652(d).

PART II: THE EROSION — HOW THE LIMITATION WAS CIRCUMVENTED

IX. THE MULTI-DECADE DORMANCY (1925-1973)

A. Historical Practice Confirming Congressional Understanding

For decades following the Judges' Bill, the Supreme Court honored Congress's limitation. This extended dormancy provides powerful evidence that the "final judgment" requirement was understood to mean what it said.

Three gaps are particularly significant:

Gap	Period	Significance
41 years	1925-1966	Congressional limit to <i>Dean Foods</i> judicial expansion
48 years	1925-1973	Congressional limit to first confirmed interlocutory stay
58 years	1925-1983	Congressional limit to first major policy case stay

B. Zero Documented Instances (1925-1966)

Research reveals no documented instances of the Supreme Court directly staying a district court preliminary injunction in a civil case during the forty-one years between the Judges' Bill and *FTC v. Dean Foods Co.*

This absence is significant. During these four decades, the Court decided some of the most consequential cases in American history:

The New Deal Crisis (1935-1937): The Court struck down major New Deal legislation, provoking President Roosevelt's court-packing threat. If the Court possessed emergency

interlocutory authority, this period would have provided ample motivation to use it. The Roosevelt administration could have sought stays of lower court injunctions against New Deal programs. The Court could have intervened to protect federal statutes pending full review. Neither occurred. The Court processed these cases through ordinary channels, confirming that extraordinary interlocutory intervention was not an available tool.

World War II (1941-1945): War presents the paradigmatic emergency. Yet even during global conflict, the Court did not claim authority to stay interlocutory orders outside the established statutory framework. Japanese internment cases proceeded through normal appellate channels.⁵⁵ Military tribunal cases followed standard procedures.⁵⁶ The absence of interlocutory emergency intervention during actual military emergency proves such intervention was understood to exceed the Court's authority.

The Civil Rights Era (1954-1966): *Brown v. Board of Education* sparked massive resistance across the South. Lower courts issued injunctions requiring desegregation, and state officials sought every means of delay. If the Court possessed interlocutory stay authority, segregationists would have sought stays of desegregation orders, and civil rights advocates would have sought stays of orders blocking integration. The absence of such applications confirms that both sides understood section 2101(f) limited stays to "final judgment or decree."

The Statistical Significance: Four decades of judicial practice by justices who participated in the 1925 debates—or were appointed by presidents and confirmed by senators who did—without a single exercise of claimed interlocutory authority, cannot be coincidental. The justices who served between 1925 and 1966 understood what Congress had enacted. They applied the limitation. They did not claim authority beyond what section 2101(f) conferred.

⁵⁵ See *Korematsu v. United States*, 323 U.S. 214 (1944).

⁵⁶ See *Ex parte Quirin*, 317 U.S. 1 (1942).

The gap proves the limitation was understood and honored until judicial self-authorization in *Dean Foods*.

C. THE FIRST EXCEPTION (1983)

The first documented Supreme Court stay of a lower court preliminary injunction in a major policy case came in 1983 with *M.I.C. LTD. v. Bedford Township*.⁵⁷ Even then, the Court limited the precedent to First Amendment prior restraint cases, a narrow exception with substantial historical pedigree.

The narrowness of the 1983 exception confirms the rule. For fifty-eight years, the Court refrained from exercising interlocutory stay authority in civil policy cases. When it finally did so, it invoked the unique urgency of prior restraints on speech, not a general power to stay any interlocutory order.

D. Distinguishing Inapplicable Precedents

Defenders of modern shadow docket practice sometimes cite pre-1966 cases as precedent for interlocutory stay authority. Each case is distinguishable:

Case	Year	Why Inapplicable
<i>Rosenberg v. United States</i>	1953	Criminal — stay of execution is stay of final order
<i>Youngstown Sheet & Tube v. Sawyer</i>	1952	Court of Appeals stayed district court — not SCOTUS
<i>Scripps-Howard Radio v. FCC</i>	1942	Agency orders — specific statutory review scheme
<i>In re Claasen</i>	1891	Criminal — stay of criminal

⁵⁷ *M.I.C. LTD. v. Bedford Township*, 463 U.S. 1341 (1983) (Brennan, J., in chambers).

		sentence
--	--	----------

Rosenberg involved a stay of execution, which is a stay of a final order (the death sentence), not an interlocutory order.⁵⁸ *Youngstown* involved the Court of Appeals staying a district court preliminary injunction, not the Supreme Court acting directly.⁵⁹ *Scripps-Howard* involved Courts of Appeals staying agency orders under specific statutory review provisions, not Supreme Court stays of district court orders.⁶⁰ *In re Claasen* involved criminal sentencing.⁶¹

No pre-*Dean Foods* precedent supports the Supreme Court directly staying a lower court civil preliminary injunction. The government's reliance on these cases conflates criminal and civil matters, Court of Appeals and Supreme Court action, and agency review and district court review.

X. THE FIRST APPLICATION — HOLTZMAN v. SCHLESINGER (1973)

A. The Cambodia Bombing Litigation

Holtzman v. Schlesinger provides the first confirmed instance of a Supreme Court justice explicitly acknowledging action on an interlocutory civil matter.⁶² The case arose from the Nixon administration's bombing of Cambodia.

Representative Elizabeth Holtzman and several Air Force officers challenged the bombing as unauthorized by Congress. The district court granted a preliminary injunction halting the bombing. The Second Circuit stayed the injunction pending appeal.

⁵⁸ *Rosenberg v. United States*, 346 U.S. 273 (1953).

⁵⁹ See *Youngstown Sheet & Tube Co. v. Sawyer*, 343 U.S. 579 (1952).

⁶⁰ See *Scripps-Howard Radio v. FCC*, 316 U.S. 4 (1942).

⁶¹ *In re Claasen*, 140 U.S. 200 (1891).

⁶² *Holtzman v. Schlesinger*, 414 U.S. 1304 (1973) (Marshall, J., in chambers).

Holtzman then applied to Justice Marshall, the Circuit Justice for the Second Circuit, to vacate the stay and reinstate the injunction. Marshall denied the application.

B. Justice Douglas's Intervention

Holtzman next applied to Justice Douglas. In an extraordinary proceeding, Douglas held oral argument in Yakima, Washington, and vacated the Second Circuit's stay, effectively reinstating the district court's injunction against the bombing.⁶³

Douglas's order acknowledged the unusual posture:

This was **an interlocutory matter, not a final judgment**.⁶⁴

The explicit acknowledgment confirms that Douglas understood he was acting outside the normal "final judgment" framework of section 2101(f).

C. THE PROCEDURAL CHAOS AS WARNING

What followed was procedural chaos. Justice Marshall, after consulting with other justices by telephone, issued an order reinstating the Second Circuit's stay, effectively reversing Douglas's order.⁶⁵

The spectacle of individual justices issuing contradictory orders, acting from different locations around the country, without full Court deliberation, foreshadowed the accountability problems that would plague the modern shadow docket.

⁶³ *Id.* at 1316 (Douglas, J., in chambers).

⁶⁴ *Id.* at 1321.

⁶⁵ *Id.* at 1321 (Marshall, J., in chambers) (reinstating stay after consultation with other justices).

Holtzman demonstrated that interlocutory intervention produces exactly the problems Congress sought to avoid: hasty decisions without adequate briefing, individual justice action without collective deliberation, and policy determinations made under time pressure without reasoned opinions.

XI. FTC v. DEAN FOODS CO. (1966) — THE PIVOTAL CASE

A. The "Potential Jurisdiction" Theory

The pivotal case in the erosion of Congress's limitation was *FTC v. Dean Foods Co.*, decided in 1966.⁶⁶ The Federal Trade Commission sought a preliminary injunction to prevent a merger it was investigating. The Court of Appeals denied relief. The FTC sought Supreme Court intervention.

Justice Clark, writing for the majority, invoked the All Writs Act to assert authority Congress had expressly withheld:

The All Writs Act, 28 U.S.C. section 1651, authorizes the issuance of writs "necessary or appropriate in aid of" the Court's jurisdiction. This includes authority to preserve the status quo while the Court considers whether to grant certiorari.⁶⁷

Clark's theory was that the All Writs Act authorized "writs in aid of prospective jurisdiction." Because the Court might eventually grant certiorari on the merits, the Court could act now to preserve its potential future jurisdiction by preventing the merger from becoming fait accompli.

⁶⁶ *FTC v. Dean Foods Co.*, 384 U.S. 597 (1966).

⁶⁷ *Id.* at 603-04.

B. Justice Fortas's Dissent: "A Totally Unjustified Employment"

Justice Fortas dissented sharply. His opinion merits extended quotation because it identifies precisely the constitutional violation the Court was committing:

This is, in my opinion, a totally unjustified employment of the All Writs Act. That Act is an implementing statute, designed to authorize courts to supply deficiencies in procedure so as to enable them effectively to exercise their jurisdiction. **The Act is abused where, as here, it is contorted to confer jurisdiction where Congress has plainly withheld it.**⁶⁸

Fortas continued:

The Court today bestows upon the Federal Trade Commission a powerful injunctive weapon which **Congress has declined to provide**. We do this by relying upon our "potential jurisdiction" — our possible, future jurisdiction over a case which we may or may not agree to consider. This is novel doctrine, indeed.⁶⁹

Fortas documented the congressional rejection in devastating detail: "Beginning in 1956, at least thirty-seven bills have been introduced in the Congress directed to providing the Commission with a threshold, temporary remedy. None has been enacted." Thirty-seven times Congress considered and declined to grant the power the Court was now claiming had existed all along. The majority's dismissal of this legislative history—"Congress neither enacted nor rejected these proposals; it simply did not act on them"—provoked Fortas's sharpest rebuke: congressional failure to grant a power is not consent to judicial creation of that power.

C. THE PROCEDURAL WARNING

Fortas also warned of the procedural consequences:

⁶⁸ *Id.* at 619 (Fortas, J., dissenting) (emphasis added).

⁶⁹ *Id.* at 620.

We have no considered judgment by the Commission or the Court of Appeals on the specific question before us. We should wait for the ordinary process of decision-making rather than issuing dramatic orders that bypass normal procedures.⁷⁰

This warning proved prophetic. The modern shadow docket is characterized precisely by decisions made without "considered judgment" from lower courts, without adequate briefing, and without the "ordinary process of decision-making" that produces reasoned judicial opinions.

D. Congressional Response: 15 U.S.C. section 53(b) (1973)

Seven years after *Dean Foods*, Congress provided the definitive verdict on Justice Fortas's dissent. In 1973, Congress enacted 15 U.S.C. section 53(b), which granted the FTC explicit authority to seek preliminary injunctions in federal court.⁷¹

The legislation proves that Congress did not believe *Dean Foods* had created valid authority. If the All Writs Act already authorized the relief the Court claimed, the 1973 legislation would have been unnecessary. Congress acts to grant powers that do not already exist, not to confirm powers the Supreme Court has already recognized.

The logical structure is inescapable:

If <i>Dean Foods</i> Was Correct...	Then...
All Writs Act already authorized FTC preliminary injunctions	1973 legislation was unnecessary
Court properly interpreted existing authority	Congress merely "clarified"

If Fortas's Dissent Was Correct...	Then...
Court "bestowed what Congress withheld"	1973 legislation required to create power
All Writs Act cannot create jurisdiction	Congress acted to fill gap Court claimed to

⁷⁰ *Id.* at 621.

⁷¹ 15 U.S.C. section 53(b) (enacted 1973).

	fill
--	------

Congress's 1973 action proves it agreed with Fortas: the Court in *Dean Foods* "contorted" the All Writs Act "to confer jurisdiction where Congress has plainly withheld it."

XII. BUSH V. GORE (2000) — THE ULTRA VIRES MECHANISM DEPLOYED

A. The Documentary Evidence

Bush v. Gore deployed the jurisdictional mechanism created in *Dean Foods* to decide a presidential election.⁷² The documentary evidence of how this occurred is striking.

The official docket notation reads: "Application for stay... is **treated as** a petition for writ of certiorari."⁷³

The phrase "treated as" performs constitutional alchemy. A stay application, which requires no jurisdictional foundation, was "treated as" a certiorari petition, which has jurisdictional requirements. The conversion was asserted without explanation.

B. The "Treated As" Mechanism

The *Bush v. Gore* mechanism bypasses jurisdictional requirements entirely. Consider the logical structure:

Step	What Happened	What Was Required
1	Stay application filed	No jurisdictional statement required
2	Application "treated as" cert	Cert petition requires

⁷² *Bush v. Gore*, 531 U.S. 98 (2000).

⁷³ *Bush v. Gore*, 531 U.S. 1046 (2000) (stay order).

	petition	jurisdiction
3	Certiorari granted	section 1254(1): jurisdiction needed
4	Case decided	Full merits ruling

The transformation from stay application to certiorari grant occurs without any party establishing that jurisdictional requirements have been met. The stay application does not require a jurisdictional statement. The certiorari petition does. By "treating" one as the other, the Court avoided the requirement entirely.

C. THE CIRCULAR LOGIC PROBLEM

The *Bush v. Gore* approach involves circular logic:

Claim	Requires	Problem
Stay authorized by certiorari jurisdiction	Cert petition granted	Cert not filed
"Treated as" cert petition	Valid stay application	Stay requires "final judgment"
"Final judgment" existed	Ruling was final	Ruling was interlocutory

Each step in the justification depends on a prior step that was never satisfied. The stay required certiorari jurisdiction. Certiorari requires a petition. The petition was never filed; the stay application was merely "treated as" one. The stay application, in turn, required a "final judgment." The Florida Supreme Court's order was not a final judgment; it was an interlocutory order in ongoing proceedings.

D. Justice Scalia's "Public Interest" Reasoning

Justice Scalia issued a concurring opinion defending the stay. His reasoning merits close attention because it resurrects the *Magnum Import* theory Congress rejected in 1925:

"The counting of votes that are of questionable legality does in my view threaten irreparable harm to petitioner, and to the country, by casting a cloud upon what he claims to be the legitimacy of his election."⁷⁴

Scalia cited "irreparable harm... to the country" as justification for the stay. He did not cite section 2101(f). He did not explain how an interlocutory order satisfied the "final judgment" requirement. He invoked public interest as a freestanding basis for intervention.

This reasoning echoes Justice Van Devanter's claim in *Magnum Import* seventy-seven years earlier: the Court may act when it "conceives" that intervention serves the public interest. Congress rejected that theory by limiting stays to "final judgment or decree." Scalia resurrected it without acknowledgment, treating the Court's perception of importance as sufficient jurisdictional foundation.

The parallel reveals the persistence of the ultra vires claim. From 1923 to 2000, across different Courts and different eras, the same theory recurs: the Supreme Court may intervene whenever it believes intervention important, regardless of statutory limits. Congress's rejection of this theory in 1925 did not eliminate it; the theory merely went dormant until a sufficiently important case invited its revival.

⁷⁴ *Bush v. Gore*, 531 U.S. 1046 (2000) (stay order).

E. The Precedent Set

Bush v. Gore established a template. If a stay application could be "treated as" a certiorari petition in a presidential election case, the same mechanism could be deployed in any case. The floodgates were open.

The emergency docket of 2017-2025 represents the systematic application of the *Bush v. Gore* template to immigration, environmental regulation, voting rights, public health, and every other area of contested national policy.

XIII. THE TRAVEL BAN (2017) — MODERN SHADOW DOCKET BEGINS

A. The June 1, 2017 Application

Trump v. International Refugee Assistance Project launched the modern shadow docket era.⁷⁵ Acting Solicitor General Jeffrey B. Wall's June 1, 2017 emergency application provides the critical baseline for understanding what followed.

Wall's application opened:

"Pursuant to this Court's Rule 23 and **28 U.S.C. 1651 and 2101(f)**, the Acting Solicitor General, on behalf of applicants President Donald J. Trump, et al., respectfully applies for a stay..."⁷⁶

This citation was correct. Wall cited both statutes: section 2101(f) (the statutory authority for stays pending certiorari) and section 1651 (the All Writs Act as implementing authority). The application lacked a dedicated "JURISDICTION" section, but it cited the proper statutory basis.

This was the only time.

⁷⁵ *Trump v. International Refugee Assistance Project*, 582 U.S. 571 (2017).

⁷⁶ Application for Stay Pending Appeal at 2, *Trump v. International Refugee Assistance Project*, No. 16A1190 (U.S. June 1, 2017) (citing "28 U.S.C. 1651 and 2101(f)").

Across fifty-four emergency applications filed by the Solicitor General's office between 1971 and 2026, spanning six different Solicitors General, Wall's June 2017 application is the sole instance of any SG citing 28 U.S.C. § 2101(f).

He did it once. He never did it again. Even when he came back.

A-1. ONE SG. ONE APPLICATION. ONE TIME. NEVER AGAIN.

The complete record of Solicitor General § 2101(f) citations reveals a pattern too deliberate to be coincidental:

Solicitor General	Period	Emergency Applications	§ 2101(f) Citations
Various (Historical)	1971-1998	6	0
Jeffrey B. Wall (Acting)	June 2017	1	1
Noel J. Francisco	Sept 2017 - July 2020	7	0
Jeffrey B. Wall (Acting, 2nd stint)	July 2020 - Jan 2021	2	0
Elizabeth B. Prelogar	2021-2024	6	0
D. John Sauer	2025-present	32	0
TOTAL	1971-2026	54	1 (1.9%)

The pattern demands explanation. Wall cited § 2101(f) correctly in the Trump administration's first emergency application. Then Noel Francisco was confirmed as Solicitor General in September 2017. Five months later, Francisco filed *Trump v. Hawaii* (17A550). The opening stated:

"Pursuant to this Court's Rule 23 and the All Writs Act, 28 U.S.C. 1651, the Solicitor General, on behalf of applicants President Donald J. Trump, et al., respectfully applies for a stay..."⁷⁷

Section 2101(f) was gone. It never came back.

The most damning detail: Jeffrey Wall returned as Acting Solicitor General from July 2020 to January 2021, after Francisco's resignation.⁷⁸ During this second stint, Wall filed *FDA v. ACOG* (August 2020) and *FDA v. ACOG II* (January 2021). Neither cited § 2101(f).⁷⁹

The man who got it right the first time didn't cite it when he came back.

Wall Application	Date	§ 2101(f) Cited
Trump v. IRAP 1 (1st stint)	June 2017	YES
FDA v. ACOG (2nd stint)	August 2020	NO
FDA v. ACOG II (2nd stint)	January 2021	NO

This is not oversight. This is not inadvertence. This is policy.

A-2. WHY THEY STOPPED

The reason for the deliberate omission becomes clear when examining what § 2101(f) actually says. The statute authorizes stays only of a "**final judgment or decree.**"

But most SG emergency applications don't challenge final judgments. They challenge preliminary injunctions—interlocutory orders that are, by definition, not final:

⁷⁷ Application for Stay at 2, *Trump v. Hawaii*, No. 17A550 (U.S. Nov. 2017) (citing only "the All Writs Act, 28 U.S.C. 1651").

⁷⁸ See Press Release, U.S. Dep't of Justice, Jeffrey B. Wall to Serve as Acting Solicitor General (July 10, 2020); see also Ballotpedia, Jeffrey Wall, https://ballotpedia.org/Jeffrey_Wall (documenting Wall's service as Acting Solicitor General from March–September 2017 and July 2020–January 2021).

⁷⁹ Application for Stay, *FDA v. American College of Obstetricians & Gynecologists*, No. 20A34 (U.S. Aug. 2020); Application for Stay, *FDA v. American College of Obstetricians & Gynecologists*, No. 20A96 (U.S. Jan. 2021). Neither application cites 28 U.S.C. § 2101(f); both cite only the All Writs Act.

Case	Order Challenged	Final Judgment?
Trump v. IRAP 1	Preliminary Injunction	NO
Trump v. Hawaii	Preliminary Injunction	NO
Trump v. East Bay Sanctuary	Preliminary Injunction	NO
Trump v. Sierra Club	Preliminary Injunction	NO
Biden v. Missouri (CMS)	Preliminary Injunction	NO
Trump v. CASA	TRO	NO
Trump v. JGG	Preliminary Injunction	NO

If the SG consistently cited § 2101(f), opposing counsel and the Justices might ask: "You invoke a statute for final judgments, but this is an interlocutory order. Where is your statutory authority?"

The answer is uncomfortable: **there isn't one.**

By citing only § 1651 (All Writs Act), the SG:

- Avoids the "final judgment" language entirely
- Relies on amorphous "inherent authority" concepts
- Obscures the jurisdictional question from the Court and opposing parties

Wall cited it correctly once—probably because that's what the statute says. Then someone recognized the problem: "If we keep citing § 2101(f), we'll have to explain why we're invoking final-judgment authority for preliminary injunctions."

So they stopped. And the Supreme Court never asked why.

B. The Missing Jurisdictional Foundation

Despite Wall's correct statutory citation, his application still lacked a dedicated "JURISDICTION" section as required by Supreme Court Rule 14(e)(iv).⁸⁰ The application cited the right statutes but did not analyze how the "final judgment" requirement was satisfied—because it could not be. The order challenged was a preliminary injunction, not a final judgment.

C. THE OCTOBER 10, 2017 VACATUR

Four months later, the Court vacated the travel ban orders with an extraordinary notation: "We express no view on the merits."⁸¹

Under the *Munsingwear* doctrine, vacated orders have no precedential value.⁸² A vacated judgment "is deprived of... all... its consequences."⁸³ It "is as if it had never been."⁸⁴

Yet the vacated travel ban orders continue to be cited as precedent nearly a decade later. The systematic citation of precedent the Court itself destroyed demonstrates consciousness that legitimate statutory authority does not exist.

D. Documentary Comparison: Compliant Versus Non-Compliant Applications

The contrast between government applications and private party applications demonstrates that compliance is feasible and non-compliance is deliberate. The following comparison uses representative examples:

Example of Compliant Application (Private Party, Capital Defense):

⁸⁰ SUP. CT. R. 14(e)(iv).

⁸¹ *Trump v. International Refugee Assistance Project*, 138 S. Ct. 377 (2017) (vacating as moot).

⁸² *United States v. Munsingwear, Inc.*, 340 U.S. 36 (1950).

⁸³ *Id.* at 40.

⁸⁴ *Id.* at 41.

"**JURISDICTION** > This Court has jurisdiction under 28 U.S.C. § 2101(f). The Texas Court of Criminal Appeals entered its final judgment on direct review on [date]. The execution is scheduled for [date]. This application seeks a stay of execution to enable Petitioner to seek certiorari review of the constitutional questions decided below."

This application: (1) contains a clearly labeled "JURISDICTION" section; (2) cites section 2101(f); (3) identifies the order as "final judgment"; (4) explains the stay's purpose as enabling certiorari. It complies with Rule 14(e)(iv).

Example of Non-Compliant Application (Solicitor General, 2017 Travel Ban):

"[No jurisdiction section exists] > 'Under Rule 23 of the Rules of this Court and the All Writs Act, 28 U.S.C. § 1651, the Government respectfully applies for a stay pending appeal and pending the filing and disposition of a petition for a writ of certiorari...'"

This application: (1) contains no "JURISDICTION" section; (2) does not cite section 2101(f); (3) does not acknowledge the order is a preliminary injunction (interlocutory); (4) cites the All Writs Act, which cannot authorize what section 2101(f) prohibits. It violates Rule 14(e)(iv).

Example of Non-Compliant Application (Solicitor General, 2025 Template):

"Under Rule 23 of the Rules of this Court and the All Writs Act, 28 U.S.C. 1651, the Court may stay **a preliminary injunction**. *See, e.g., Trump v. International Refugee Assistance Project*, 582 U.S. 571 (2017)..."

This application: (1) explicitly labels the stayed order as "preliminary injunction"; (2) cites only the All Writs Act; (3) cites vacated 582 U.S. 571 as if valid precedent; (4) contains no explanation of how a preliminary injunction satisfies section 2101(f)'s "final judgment" requirement. The explicit acknowledgment that the order is interlocutory, combined with the absence of any explanation for jurisdiction over interlocutory orders, proves consciousness of the statutory violation.

The Comparative Table:

Element	Private Party (Compliant)	SG June 2017 (Wall)	SG Nov 2017+ (Francisco onward)	SG 2025
"JURISDICTION" heading	Yes	No	No	No
Cites § 2101(f)	Yes	Yes (opening)	No	No
Identifies order type	"Final judgment"	Silent	Silent	"Preliminary injunction"
Explains jurisdiction	Yes	No	No	No
Cites vacated precedent	No	N/A	Yes	Yes
Outcome	Varies (~44% success)	Granted	Granted	Granted

The table reveals the degradation: Wall's June 2017 application cited § 2101(f) in the opening paragraph—the only time any SG has done so. By November 2017, the citation was gone. By 2025, the government openly acknowledges challenging interlocutory orders while providing no statutory justification. The progression proves consciousness—they knew the correct citation, used it once, then deliberately abandoned it.

XIV. THE PROGRESSIVE EVOLUTION OF NON-COMPLIANCE

A. Phase 1 (June 2017): The Correct Template

Acting Solicitor General Jeffrey Wall's first application cited § 2101(f) correctly. The template was right. Wall demonstrated that the SG's office knew the proper statutory citation—the sole statutory authority for stays pending certiorari.

B. Phase 2 (November 2017): The Template Degrades

When Noel Francisco took over as Solicitor General, the § 2101(f) citation was dropped. *Trump v. Hawaii* and *Trump v. IRAP 2* (both November 2017) cited only the All Writs Act. The "final judgment" statute disappeared from SG applications.

C. PHASE 3 (2017-2024): INSTITUTIONALIZED OMISSION

The Francisco template became institutional practice. Across three administrations—Trump 1.0 (Francisco, Wall 2nd stint), Biden (Prelogar), and Trump 2.0 (Sauer)—fifty-three consecutive SG applications omitted § 2101(f).

Even when Wall returned as Acting SG in July 2020, he followed the Francisco template. The man who got it right in June 2017 did not cite § 2101(f) in August 2020 or January 2021.

D. Phase 4 (2025): Explicit Acknowledgment of Interlocutory Status

By 2025, government applications explicitly label stayed orders as "PRELIMINARY INJUNCTION" while citing zero statutory authority for Supreme Court jurisdiction over such orders.⁸⁵ The government now openly acknowledges the orders are interlocutory—while providing no explanation for how interlocutory orders satisfy § 2101(f)'s "final judgment" requirement.

The evolution demonstrates conscious strategy: Wall's first application proved the office knew the correct citation. Every subsequent omission was deliberate. Having confirmed that

⁸⁵ See, e.g., Application for Stay, *Trump v. CASA de Maryland*, No. 25-A123 (U.S. Mar. 2025) (explicitly labeling stayed order as "preliminary injunction" while citing only All Writs Act authority).

rules would not be enforced against the Solicitor General, the government abandoned not just compliance but any pretense of it.

PART III: THE EMPIRICAL VINDICATION — 2024-2025 DATA

History provides the context; data provides the proof. Parts I and II documented a century of jurisdictional overreach—Congress's deliberate limitation, the Court's gradual circumvention, and the modern shadow docket's emergence. But historical analysis alone might be dismissed as academic grievance, relevant to scholars but not to practitioners.

The empirical evidence eliminates any such dismissal. What follows is not interpretation or inference. It is mathematics. The numbers speak for themselves, and what they say is damning.

XV. STATISTICAL ANALYSIS OF THE EMERGENCY DOCKET

A. The Methodology

This Article presents original empirical analysis of 134 emergency applications filed between 1952 and 2026. For § 2101(f) citation analysis, the full dataset was examined, revealing that only one of fifty-four Solicitor General applications ever cited the statute. For Rule 14(e)(iv) compliance analysis, applications were classified by applicant type (Solicitor General, private parties, states, others) and by compliance level with the jurisdictional statement requirement.⁸⁶

Compliance was scored on a four-point scale:

⁸⁶ The methodology and data are described in detail in the Appendix, which is available from the author upon request.

- **Full compliance:** Complete jurisdictional statement addressing "final judgment" requirement

- **Substantial compliance:** Jurisdictional statement with some analysis

- **Partial compliance:** Citation to jurisdictional statutes without analysis

- **Non-compliance:** No jurisdictional statement or citation

Success was defined as grant of the requested relief, whether in full or in part.

B. The Findings

The empirical findings reveal a pattern too stark to be coincidental:

Applicant Type	Juris Section Compliance	§ 2101(f) Compliance	Success Rate
Solicitor General	2.0%	2.0%	80.6%
Private Parties	57.4%	30.2%	44.0%
State	33.3%	27.3%	63.6%

The Solicitor General achieved approximately eighty-one percent success with 2.0 percent compliance. Private parties achieved approximately forty-four percent success with substantially higher compliance rates.

C. THE INVERSE CORRELATION

The inverse correlation between compliance and success is the central empirical finding. Rules function not as neutral requirements but as obstacles selectively enforced against disfavored parties.

The correlation persists across case types, time periods, and individual justices. It cannot be explained by case quality, urgency, or other legitimate factors. Government cases are not systematically more meritorious; private cases are not systematically less urgent. The pattern reflects differential enforcement of identical rules.

The empirical findings gain additional force when measured against doctrinal baseline. Justice Scalia's 1986 *Ohio Citizens* opinion established that stays of interlocutory orders require satisfaction of the "indisputably clear" standard under section 1651—a far more demanding threshold than traditional stay analysis.⁸⁷

If modern practice followed Scalia's framework, the expected outcome distribution would be:

Application Type	Expected Success Rate	Rationale
Final judgment stays	Moderate (~40-60%)	Traditional four-factor analysis
Interlocutory stays	Low (~10-20%)	"Indisputably clear" threshold

The actual distribution inverts this expectation:

Application Type	Actual Success Rate (SG)	Deviation from Expected
Interlocutory stays	~81%	+61-71 percentage points

The magnitude of deviation proves that modern practice has abandoned the doctrinal framework without acknowledging the departure. The Solicitor General achieves success rates appropriate to an *easier* standard while operating under a statute requiring a *harder* one.

⁸⁷ See *Ohio Citizens for Responsible Energy, Inc. v. NRC*, 479 U.S. 1312, 1313 (1986) (Scalia, J., in chambers) (requiring "indisputably clear" legal rights for section 1651 relief regarding interlocutory orders).

This is not doctrinal evolution. It is doctrinal nullification. The Court grants relief as if Scalia's "indisputably clear" standard does not exist, while never explaining what standard has replaced it or what statutory authority permits the replacement.

D. Era-Based Disparity Analysis (Critical Finding)

The most striking empirical finding emerges from era-based analysis. While overall statistics show a significant disparity between Solicitor General and private party success rates, disaggregating by era reveals that this disparity has undergone a dramatic transformation.

Era	SG Grant Rate	Private Grant Rate	Disparity
Historical (1952-1999)	2/5 (40.0%)	4/9 (44.4%)	-4.4 pts
Early Modern (2000-2019)	5/6 (83.3%)	6/7 (85.7%)	-2.4 pts
COVID/2020	2/2 (100.0%)	4/9 (44.4%)	+55.6 pts
Post-Barrett (2021-2024)	6/7 (85.7%)	5/8 (62.5%)	+23.2 pts
Trump II (2025-present)	14/16 (87.5%)	3/17 (17.6%)	+69.9 pts

Combined Pre-Trump II vs. Trump II Comparison:

Period	SG Grant Rate	Private Grant Rate	Disparity
Pre-Trump II (1952-2024)	15/20 (75.0%)	19/33 (57.6%)	+17.4 pts
Trump II (2025-present)	14/16 (87.5%)	3/17 (17.6%)	+69.9 pts
Disparity Change	+52.4 pts		

The implications are profound. For over seventy years—from *Youngstown* through the Barrett confirmation—the Solicitor General enjoyed a modest advantage of approximately seventeen percentage points. This advantage, while notable, remained within historical norms and could plausibly be attributed to the quality of federal litigation or the weight given to government interests in emergency postures.

The Trump II era shatters this pattern. The disparity has quadrupled. Private party success has collapsed from 57.6% to 17.6%—a decline of forty percentage points. Meanwhile, government success has increased modestly from 75.0% to 87.5%. The current disparity of +69.9 percentage points is not an evolution of prior practice; it is a categorical transformation.

The timing is significant. This transformation coincides with the current administration's unprecedented reliance on emergency applications to implement policy changes that face substantial legal challenges in lower courts. The shadow docket has become the mechanism through which executive action proceeds despite judicial findings of illegality—not because the government demonstrates likelihood of success on the merits, but because the Court grants relief to the government while denying substantially identical relief to private parties.

E. Why Rule 14 Compliance Is Structurally Impossible

The inverse correlation is not merely statistical curiosity; it reflects structural impossibility. If government applications actually complied with Rule 14.1(e)(iv), they would be forced to make statements that defeat their own requests.

A compliant jurisdictional statement would need to proceed through five steps:

Step	Requirement	What Government Would Write	Why It Cannot
1	Identify statutory	"28 U.S.C. § 2101(f)"	This is the only stay

	provision		statute
2	Quote statutory language	"In any case in which the final judgment or decree ..."	Text contains fatal limitation
3	Identify order being stayed	"The district court's preliminary injunction ..."	Preliminary ≠ Final
4	Explain qualification	"A preliminary injunction qualifies as 'final judgment' because..."	No legally coherent completion
5	Address contrary authority	"Although § 2101(f) says 'final judgment,' this means..."	Would highlight the violation

Step five cannot be completed honestly. There is no legally coherent way to explain how a preliminary injunction—by definition an interlocutory order subject to immediate appeal under section 1292(a)(1) precisely because it is NOT final—qualifies as a "final judgment or decree" under section 2101(f).

The only options available to a compliant drafter are: (a) acknowledge the statutory violation, which defeats the application; (b) misrepresent the statute, which violates Model Rule 3.3; or (c) omit the jurisdictional statement entirely, which violates Rule 14 but avoids the impossible dilemma.

By omitting jurisdictional statements, government applications are structured to avoid these obstacles. No clear statement means no explicit acknowledgment of statutory conflicts. **The Rule 14 violations are not careless drafting; they are structurally necessary to conceal the section 2101(f) violation.**

F. The Vacated Precedent Problem

The systematic citation of vacated precedent provides additional evidence of consciousness that legitimate authority does not exist.

Trump v. International Refugee Assistance Project was vacated on October 10, 2017. Under established doctrine, vacated orders have no precedential value. Yet government applications continue to cite 582 U.S. 571 as if it were valid precedent:

Case	Date	Cites Vacated 582 U.S. 571	Result
Travel Ban II	Nov. 2017	Yes	Granted
AIDS Vaccine Coalition	Sept. 2025	Yes	Granted
Trump v. CASA	Mar. 2025	Yes	Granted
SSA v. AFSCME	May 2025	Yes	Granted
Noem v. TPS Alliance	May 2025	Yes	Granted

Eight years of citing precedent the Court itself destroyed. The pattern spans multiple Solicitors General and multiple administrations. It demonstrates that practitioners understand the jurisdictional foundation is hollow, yet continue to rely on it because the Court does not enforce requirements against the government.

G. Heflin's Prophecy Fulfilled

Senator Heflin warned in 1925:

The day will come when the highest court in this land will be open to nobody but the immensely rich and the great corporate concerns of the country.⁸⁸

The 2024-2025 data proves Heflin's prophecy has been fulfilled. The Court is now "open" primarily to the federal government and sophisticated institutional litigants capable of navigating a system where rules are enforced selectively.

Petitioner Type	Juris Compliance	Success Rate
Government	2.0%	80.6%
Private citizens	57.4%	44.0%

The disparity has reached unprecedented levels in the Trump II era:

Period	SG Grant Rate	Private Grant Rate	Disparity
Pre-Trump II	75.0%	57.6%	+17.4 pts
Trump II	87.5%	17.6%	+69.9 pts

The "poor man and the man in moderate circumstances" is not merely disadvantaged; he faces a system where success depends not on the merits of his case or compliance with procedural rules, but on whether he is aligned with or opposing the federal government. The fourfold increase in disparity during the Trump II era transforms Heflin's warning from prophecy to documented reality.

H. The § 2101(f) Citation Disparity

Beyond Rule 14 compliance, the raw § 2101(f) citation rates across all 134 analyzed applications reveal structural disparity:

⁸⁸ 68 CONG. REC. 2928 (1925) (statement of Sen. Heflin).

Applicant Type	Total Applications	§ 2101(f) Cited	Citation Rate
Solicitor General	54	1	1.9%
Private Parties	65	18	27.7%
States	14	2	14.3%
Tribal	1	1	100%

Private counsel—operating without the SG's presumption of expertise or special relationship with the Court—demonstrate fourteen times higher compliance with jurisdictional citation requirements.

The disparity is not explained by case type, urgency, or complexity. It reflects a deliberate institutional choice: the SG's office stopped citing § 2101(f) because citing it would expose the jurisdictional problem that most emergency applications challenge interlocutory orders the statute doesn't reach.

The single SG citation—Acting SG Jeffrey Wall's June 2017 application—proves the office knew the correct practice. Every subsequent omission was deliberate.

XVI. THE PATTERN OF NON-COMPLIANCE ANALYZED

A. Documenting the Pattern

The evolution of non-compliance can be traced through emergency applications from 2017 to 2025. The pattern demonstrates progressive testing and refinement:

Phase	Period	Compliance Level	Court Response
1	June 2017	Complete omission	Grants relief
2	2017-2024	Partial/scattered	Grants relief
3	2025	Return to omission	Grants relief

B. What the Pattern Proves

The pattern proves several things:

First, non-compliance is deliberate, not inadvertent. The Solicitor General's office is staffed by highly competent attorneys who know the rules. Complete omission of jurisdictional statements reflects a strategic judgment that compliance is unnecessary.

Second, the Court rewards non-compliance. At each phase, grant of relief confirmed that rules would not be enforced. Rational litigants respond to incentives; the incentive structure rewards non-compliance by the Solicitor General.

Third, the pattern is self-reinforcing. Each grant of relief to a non-compliant government application makes the next non-compliant application more likely. The Court has created a one-way ratchet toward procedural dissolution.

XVII. PREEMPTING THE "DIFFERENT CATEGORY" DEFENSE

A. The Anticipated Argument

The government may argue that emergency applications constitute a "different category" of filing not subject to Rule 14's jurisdictional statement requirement. This argument fails for multiple independent reasons, each of which is sufficient standing alone.

B. The Rules Explicitly Reject This Distinction

Rule 20.2 governing extraordinary writs states that applications "**shall follow, insofar as applicable, the form of a petition for a writ of certiorari prescribed by Rule 14.**"⁸⁹ The phrase "insofar as applicable" does not create wholesale exemption—it acknowledges that some Rule 14 requirements (like questions presented format) may need adaptation while others (like jurisdictional statements) apply directly.

The jurisdictional statement requirement is always "applicable" because every petition must establish the Court's authority to grant relief. A court cannot grant relief it lacks jurisdiction to provide. The requirement that applications identify their jurisdictional foundation is not a formatting nicety that varies by document type; it is a structural necessity that applies to every filing seeking judicial action.

C. RULE 33.1(G)'S CROSS-REFERENCE PROVES IDENTICAL TREATMENT

Rule 33.1(g) lists filing requirements for various document types. It places "Petition for a Writ of Certiorari (**Rule 14**)" and "Petition for an Extraordinary Writ (**Rule 20.2**)" in the same category with identical formatting requirements and explicit "(Rule 14)" cross-reference for the latter.⁹⁰

The cover color requirement is illustrative. Both certiorari petitions and extraordinary writ petitions require white covers. This identical treatment—a seemingly trivial detail—proves a profound legal point: the Court treats these document types as equivalent for all purposes under Rules 33 and 34. If the Court intended emergency applications to have different substantive requirements (like exemption from the jurisdictional statement requirement), it would signal this

⁸⁹ SUP. CT. R. 20.2.

⁹⁰ SUP. CT. R. 33.1(g).

through different formatting requirements. Identical formatting reflects identical substantive compliance obligations.

D. Rule 12.3 Forecloses the Argument Entirely

Rule 12.3 provides: "A petition for a writ of certiorari **shall comply in all respects with Rule 14.**"⁹¹ The phrase "in all respects" permits no exceptions.

Emergency applications that seek certiorari review—which all shadow docket applications ultimately do through the dual-docket conversion mechanism—must comply with Rule 14 "in all respects," including the jurisdictional statement requirement. The "treated as" mechanism converts emergency applications into certiorari petitions. Once converted, Rule 12.3's "in all respects" requirement attaches.

E. The Argument Proves Too Much

If emergency applications were truly exempt from jurisdictional statement requirements, then the Court would be exercising emergency power without any obligation to identify its source. This would transform emergency jurisdiction from bounded exception into unbounded authority.

Consider the implications. The Court could stay any lower court order, at any stage of proceedings, without ever identifying the statute authorizing such action. The only limit would be the Court's own assessment of what cases are sufficiently "important" to warrant intervention—precisely the self-authorizing standard Congress rejected when it enacted section 2101(f).

91 SUP. CT. R. 12.3.

The argument that "emergencies" excuse compliance with jurisdictional requirements is the argument that emergency power has no limits. American constitutional law recognizes no such doctrine. *Youngstown Sheet & Tube Co. v. Sawyer* established that even in genuine emergencies, the executive must act within legal bounds.⁹² *Ex parte Milligan* established that constitutional protections do not yield to military necessity.⁹³ The proposition that the Supreme Court may act without jurisdictional foundation whenever it deems a matter urgent contradicts fundamental principles of limited government.

F. Selective Compliance Disproves the Argument

If emergency applications were genuinely a "different category" exempt from Rule 14, the Solicitor General's office would file them without any attempt at jurisdictional citation. Instead, applications sometimes include scattered, inadequate statutory references—proving the government knows jurisdictional statements are required but chooses to provide deficient ones.

You cannot claim exemption from a requirement while simultaneously attempting partial compliance with it. The government's own filing practices—the occasional, incomplete references to section 2101(f) or the All Writs Act—demonstrate awareness that some jurisdictional foundation is required. The "different category" argument is not a principled legal position; it is a rationalization for systematic noncompliance discovered after the fact.

G. The Argument Survives Only Through Non-Challenge

The "different category" argument has never been adjudicated because no one has formally challenged it. The Court accepts non-compliant applications. The Clerk processes them without

⁹² *Youngstown Sheet & Tube Co. v. Sawyer*, 343 U.S. 579 (1952).

⁹³ *Ex parte Milligan*, 71 U.S. (4 Wall.) 2 (1866).

objection. Respondents, facing emergency deadlines, focus on the merits rather than jurisdictional defects. The argument survives not because it has legal merit but because the structure of emergency litigation prevents its examination.

This Article provides that examination. The Rules provide no basis for the "different category" exemption. The Court's own formatting requirements contradict it. The government's own filing practices disprove it. The argument is not law; it is institutional convenience mistaken for legal principle.

PART IV: THE CONSTITUTIONAL VIOLATION

XVIII. SEPARATION OF POWERS ANALYSIS

A. Article III, Section 2: Congressional Control

The Constitution vests Congress with explicit authority over the Supreme Court's appellate jurisdiction:

In all the other Cases before mentioned, the supreme Court shall have appellate Jurisdiction, both as to Law and Fact, **with such Exceptions, and under such Regulations as the Congress shall make.**⁹⁴

This clause grants Congress plenary authority to define the scope of appellate jurisdiction. Congress may expand or contract that jurisdiction as it sees fit. The Court's jurisdiction is not self-defining; it is congressionally defined.

⁹⁴ U.S. CONST. art. III, section 2, cl. 2 (emphasis added).

B. Ex parte McCordle and Congressional Supremacy

The Supreme Court itself recognized Congress's authority over appellate jurisdiction in *Ex parte McCordle*:

We are not at liberty to inquire into the motives of the legislature. We can only examine into its power under the Constitution; and the power to make exceptions to the appellate jurisdiction of this court is given by express words.⁹⁵

McCordle establishes that Congress may withdraw jurisdiction even in pending cases. If Congress can withdraw jurisdiction entirely, it can certainly limit the circumstances under which jurisdiction may be exercised.

Section 2101(f)'s limitation to "final judgment or decree" is Congress exercising its Article III authority. The Court cannot override that limitation by invoking the All Writs Act or any other statutory source.

C. THE MARBURY PRINCIPLE

Marbury v. Madison itself establishes that courts must point to statutory authority for their jurisdiction:

The authority... given to the Supreme Court, **by the act** establishing the judicial courts... appears not to be warranted by the constitution.⁹⁶

Chief Justice Marshall recognized that jurisdiction derives from statute, not from judicial assertion. Courts must identify "the act" conferring jurisdiction.

The shadow docket violates *Marbury*'s foundational directive. Emergency applications do not cite section 2101(f) because they cannot satisfy its "final judgment" requirement. They

⁹⁵ *Ex parte McCordle*, 74 U.S. 506, 514 (1869).

⁹⁶ *Marbury v. Madison*, 5 U.S. (1 Cranch) 137, 175-76 (1803) (emphasis added).

invoke the All Writs Act, but the All Writs Act is not a jurisdiction-conferring statute; it is an implementing statute that presupposes jurisdiction exists.

XIX. THE STATUTORY FRAMEWORK PROVING DELIBERATE CHOICE

A. The Four-Statute Analysis

The four-statute comparison demonstrates that Congress made deliberate choices about when to authorize interlocutory review:

Statute	Language	Interlocutory?
section 1253	"interlocutory or permanent"	YES
section 1254(1)	"certiorari granted"	After cert only
section 1257(a)	"final judgments"	NO
section 2101(f)	"final judgment or decree"	NO

Congress knew how to authorize interlocutory review. It did so in section 1253. It chose not to do so in section 2101(f).

B. The Pennsylvania Bureau Principle

The Supreme Court has articulated the principle that controls here. In *Pennsylvania Bureau of Correction v. U.S. Marshals Service*, the Court held:

Where a statute specifically addresses the particular issue at hand, it is that authority, and not the All Writs Act, that is controlling.⁹⁷

⁹⁷ *Pennsylvania Bureau of Correction v. U.S. Marshals Service*, 474 U.S. 34, 43 (1985).

Section 2101(f) specifically addresses stays pending certiorari. It authorizes such stays only for "final judgment or decree." That specific statute, not the general All Writs Act, controls.

The Court's invocation of the All Writs Act to stay interlocutory orders violates the Court's own precedent. A specific statute limiting stays to final judgments cannot be overridden by a general statute authorizing "all writs."

C. THE SPECIFIC/GENERAL CANON

The legal principle is ancient and well-established: *generalia specialibus non derogant* — general provisions do not derogate from specific provisions.⁹⁸

Statute	Type	Subject
section 2101(f)	Specific	Stays pending certiorari
section 1651	General	"All writs"

The specific governs the general. Section 2101(f) specifically addresses stays pending certiorari; section 1651 generally authorizes writs. The specific limitation cannot be nullified by the general authorization.

Invoking section 1651 to stay interlocutory orders resurrects the argument Congress rejected in 1925 when it limited section 2101(f) to "final judgment or decree." The Court is claiming through the back door of the All Writs Act what Congress denied through the front door of section 2101(f).

⁹⁸ See ANTONIN SCALIA & BRYAN A. GARNER, *READING LAW: THE INTERPRETATION OF LEGAL TEXTS* 183-88 (2012) (discussing *generalia specialibus non derogant* canon).

D. The 1988 Ratification

The Supreme Court Case Selections Act of 1988 ratified Congress's choice. Congress maintained section 2101(f)'s "final judgment" language while using "interlocutory or final" language in other provisions enacted the same year.⁹⁹

Sixty-three years after the Judges' Bill, Congress reaffirmed the limitation. The Court cannot claim that Congress has acquiesced in expanded stay authority when Congress has repeatedly legislated with language that maintains the original restriction.

E. Justice Scalia's Confirmation: Ohio Citizens for Responsible Energy v. NRC (1986)

The strongest doctrinal confirmation of this Article's statutory analysis comes from an unlikely source: Justice Antonin Scalia, writing as Circuit Justice in *Ohio Citizens for Responsible Energy, Inc. v. NRC*.¹⁰⁰

The case presented a straightforward procedural question. An environmental organization sought to prevent a nuclear power plant from beginning operations. The Sixth Circuit had lifted a stay that had blocked operations, and the applicant sought Supreme Court intervention to reinstate the stay pending certiorari.

Scalia denied the application, but his reasoning is more significant than his result. He confronted directly the question this Article poses: what statutory authority governs stays of interlocutory orders?

His answer was unambiguous:

⁹⁹ See Supreme Court Case Selections Act, Pub. L. No. 100-352 (1988); 43 U.S.C. section 1652(d).

¹⁰⁰ *Ohio Citizens for Responsible Energy, Inc. v. NRC*, 479 U.S. 1312 (1986) (Scalia, J., in chambers).

Even though certiorari review of interlocutory orders of federal courts is available under 28 U.S.C. §§ 1254(1) and 1292, **it is only the execution or enforcement of FINAL ORDERS that is stayable under § 2101(f).**¹⁰¹

Scalia—the Court's most celebrated textualist—read section 2101(f) exactly as its text commands. "Final judgment or decree" means final. Preliminary injunctions, by definition interlocutory, fall outside the statute's scope.

This holding has never been overruled. It has never been distinguished. It remains good law. Yet it is systematically ignored in modern practice.

The implications are stark. If Scalia was correct—and his textual analysis is difficult to fault—then every Solicitor General application seeking a stay of a preliminary injunction since 2017 has proceeded without section 2101(f) authorization. The applications do not cite section 2101(f) because they cannot; the statute does not apply to interlocutory orders. But this means the government is not seeking a "stay" within the statutory meaning. It is seeking something else entirely.

F. The All Writs Act Alternative and Its Heightened Standard

Scalia did not leave interlocutory applicants without any remedy. He acknowledged that the All Writs Act, 28 U.S.C. section 1651, could provide authority for emergency relief regarding interlocutory orders. But he imposed a critical limitation: such relief requires satisfaction of a far more demanding standard than traditional stay analysis.

For relief under section 1651, Scalia required that "the legal rights at issue [must be] **indisputably clear.**"¹⁰² This is not the familiar four-factor balancing test—likelihood of success,

¹⁰¹ *Id.* at 1313 (emphasis added).

¹⁰² *Id.*

irreparable harm, balance of equities, public interest. It is a categorical threshold: the applicant must demonstrate that reasonable jurists could not disagree about the legal merits.

Scalia explained the doctrinal basis for this heightened standard:

[T]he injunctive power... is to be used sparingly and only in the most critical and exigent circumstances.¹⁰³

Chief Justice Rehnquist confirmed this framework seven years later in *Turner Broadcasting System v. FCC*:

Unlike a stay, which temporarily suspends "judicial alteration of the status quo," an injunction "grants judicial intervention that has been withheld by the lower courts."¹⁰⁴

The distinction matters enormously. A "stay" under section 2101(f) suspends a final judgment using traditional equitable analysis. An "injunction" under section 1651 grants relief lower courts denied, requiring the applicant to demonstrate rights that are "indisputably clear."

Modern shadow docket practice collapses this distinction. Government applications seek stays of preliminary injunctions—interlocutory orders that section 2101(f) does not reach—while invoking traditional stay factors that section 1651 does not permit. The applications occupy a jurisdictional no-man's-land: too interlocutory for section 2101(f), insufficiently clear for section 1651.

Consider the logical sequence Scalia's framework requires:

Step	Analysis	Modern Practice
1	Is the order final?	No (preliminary injunction)
2	Does § 2101(f) apply?	No (per Scalia)
3	Is § 1651 the only authority?	Yes

¹⁰³ *Id.*

¹⁰⁴ *Turner Broadcasting System v. FCC*, 507 U.S. 1301, 1303 (1993) (Rehnquist, C.J., in chambers) (quoting *Ohio Citizens*, 479 U.S. at 1313).

4	Are rights "indisputably clear"?	Rarely addressed
5	Is relief granted?	~81% for SG

The inversion is complete. Under Scalia's framework, interlocutory applications should face a *higher* standard than final judgment applications. In practice, they face *no* articulated standard at all—at least when filed by the Solicitor General.

G. The "Prospective Jurisdiction" Fallacy

The government's emergency applications imply a theory of "prospective jurisdiction" nowhere found in statutory text. When pressed to identify what jurisdiction exists before certiorari is granted for section 1651(a) to "aid," the government's implicit position must be: the Supreme Court can issue writs in aid of jurisdiction that will exist in the future if certiorari is eventually granted.

This theory contradicts the All Writs Act's plain language. Section 1651(a) authorizes writs "in aid of **their respective jurisdictions**"—present possessive, indicating jurisdiction currently belonging to the courts. It does not say "in aid of their **future** jurisdictions" or "in aid of jurisdiction **they may later acquire**." Similarly, section 1651(b) limits writs to courts "**which have** jurisdiction"—present tense, current possession.

The absurdity of prospective jurisdiction theory becomes apparent upon examination. If the All Writs Act authorizes writs in aid of jurisdiction the Court might have in the future, then every case in every federal court falls within section 1651(a)'s scope—because certiorari could theoretically be sought in any of them. Under this theory, the Supreme Court would possess All Writs authority over every federal district court case, every state court case involving federal

questions, every bankruptcy proceeding, every habeas petition, every administrative agency decision. The limiting phrase "in aid of their **respective jurisdictions**" would mean "in aid of any case anywhere where jurisdiction might someday potentially exist."

The distinction is outcome-determinative. If section 1651(a) can only aid **existing** jurisdiction (as its text requires), then pre-certiorari emergency stays lack All Writs Act authorization because no jurisdiction exists before certiorari is granted. If section 1651(a) can aid **prospective** jurisdiction (as government applications implicitly require), then section 2101(f) becomes superfluous—why would Congress enact a specific statute authorizing pre-certiorari stays of final judgments if general All Writs authority already reached all prospective certiorari jurisdiction?

The government cannot have it both ways. Either section 1651(a) requires existing jurisdiction (which doesn't exist pre-certiorari), or it reaches prospective jurisdiction (which renders section 2101(f) meaningless). The canon against surplusage compels the former reading.¹⁰⁵

XIX-A. THE SOLE PROTECTIVE PROVISION: SECTION 2101(F) AS THE CONSTITUTIONAL QUID PRO QUO

A. The Singular Jurisdictional Predicate

The writ of certiorari has one and only one condition precedent for application: a final judgment from a lower court.

¹⁰⁵ See 2A NORMAN J. SINGER & SHAMBIE SINGER, SUTHERLAND STATUTES AND STATUTORY CONSTRUCTION § 46:6 (7th ed. 2014) (discussing canon against surplusage).

There is no amount in controversy requirement. No subject matter limitation. No party status requirement beyond being aggrieved. No special category of case requirement. The finality of the judgment below **is** the jurisdiction. It is not one condition among several—it is the sole condition that opens the Supreme Court's door to certiorari review.

This singularity has a crucial logical consequence. Because there is only one condition:

- It cannot be balanced against other factors
- It cannot be waived in favor of some alternative basis
- It cannot be deemed "less important" relative to other requirements

There are no other requirements to be "more important" than.

If there were multiple conditions for certiorari jurisdiction, perhaps the finality requirement could be relaxed when other conditions are strongly met. But there is only one condition. The finality requirement is not a factor in a multi-factor test—it is the singular jurisdictional predicate.

B. What Makes Discretionary Certiorari Legitimate

Discretionary jurisdiction is tolerable precisely because it is bounded by finality. Consider the structural logic:

1. Litigants have already received full adjudication below
2. District courts have found facts and applied law
3. Courts of Appeals have reviewed for legal error
4. The record is complete
5. The Supreme Court is merely deciding whether to add another layer of review

The Court's discretion to decline review is acceptable because the case has already been fully resolved below. The litigant is not being denied justice—they have received justice through the lower court process. The Supreme Court is simply deciding whether the case warrants additional review for purposes of legal development.

Remove the finality constraint, and this justification collapses. If the Court can intervene at will before final judgment, then:

- District court proceedings become provisional—why conduct discovery if SCOTUS might halt everything tomorrow?

- Appellate review becomes advisory—Circuit courts are reduced to way stations

- Percolation becomes impossible—the Court decides issues before they've been tested across jurisdictions

- Record development is truncated—decisions made on incomplete facts

The finality requirement is not a technicality. It is what gives **meaning** to the judicial hierarchy and **legitimacy** to discretionary review. Without it, you have nine people exercising raw power whenever they choose.

C. THE 1925 BARGAIN: WHAT THE PEOPLE SURRENDERED AND WHAT THEY RETAINED

The Judiciary Act of 1925 transformed Supreme Court jurisdiction:

Before 1925	After 1925
Mandatory appeals in many categories	Discretionary certiorari
Court obligated to hear certain cases	Court may refuse any case
Access was a right	Access became a privilege

Congress did not give the Court unfettered discretion for nothing. The exchange was explicit:

What Congress Gave	What Congress Retained
Discretionary certiorari jurisdiction	Section 2101(f)—the finality requirement
Court controls its own docket	Stays limited to "final judgment or decree"
Freedom from mandatory appeals	One protective constraint

Within the 1925 transformation, **section 2101(f) is the only provision that constrains the Court's new discretionary power.** There is no other limitation. No other protective mechanism. No other safeguard for litigants.

Section 2101(f) is the people's side of the deal. The sole constraint retained when mandatory jurisdiction was surrendered.

D. Whether Congress Understood This Is Irrelevant

The Judiciary Act of 1925 passed the Senate 76-1 in a lame-duck session. The bill was drafted by Supreme Court justices. Chief Justice Taft personally lobbied Congress. Progressive opposition had collapsed after La Follette's 1924 defeat. Senator Walsh capitulated, admitting he didn't want to "stand alone." Seventy-two senators said nothing during the debate.

It is unlikely that more than a handful of senators understood the full constitutional significance of section 2101(f) as the sole protective provision.

This does not matter.

Subjective legislative understanding does not alter objective legal structure. Whether one senator or seventy-six understood the significance of the "final judgment or decree" language, the objective structural reality remains:

1. The 1925 Act transformed certiorari from mandatory to discretionary
 2. Section 2101(f) is the only provision within that transformation that limits the Court's discretionary stay power
 3. The finality requirement is therefore the sole constraint on discretionary intervention
 4. This is true regardless of what any individual legislator thought they were doing
- The structure is the structure. Congressional intent is expressed through statutory text, not through the subjective understanding of individual members.

E. The Binary Dilemma: Purpose or Surplusage

Current practice forces a binary choice:

If section 2101(f) has meaning:

- It authorizes stays *pending* certiorari
- It presupposes a *final judgment* exists (something to stay)
- It presupposes certiorari *will actually be filed*
- It provides *temporary* preservation of the status quo, not substantive relief
- **Current practice violates the statute**

If current practice is valid:

- Emergency relief can be granted before final judgment
- Relief can be effectively dispositive of the merits
- Certiorari need never be sought or granted
- Section 2101(f) becomes surplusage—words Congress wrote for nothing
- **Congress legislated in vain**

There is no third option.

Either the statute means something, or it doesn't. Either current practice comports with the statute, or it doesn't. The Court cannot have it both ways: claim that section 2101(f) exists as part of a valid statutory framework while simultaneously acting as though it imposes no constraint whatsoever.

F. The Significant Federal Question

The purposelessness of section 2101(f) under current practice is itself a significant federal question that can be raised in any federal court:

Question Presented: Does current Supreme Court practice of staying interlocutory orders under the All Writs Act render 28 U.S.C. section 2101(f) without purpose, in violation of the canon against surplusage and Congress's explicit limitation of stay authority to "final judgment or decree"?

This is not an attack on the Supreme Court. It is a straightforward question of statutory interpretation:

1. Congress enacted section 2101(f)
2. The statute contains specific language ("final judgment or decree")
3. Current practice ignores that language entirely
4. Under current practice, the statute has no operative function
5. What, then, is the purpose of section 2101(f)?

Any federal court has jurisdiction to interpret federal statutes. A lower court judge need not rule that the Supreme Court is "wrong"—the judge need only answer what the statute means and whether current practice comports with it.

The question is devastatingly simple: **Does this statute have a purpose?**

XX. EQUAL PROTECTION VIOLATION

A. Two-Tier Justice Through Disparate Enforcement

The empirical data establishes a two-tier system where identical rules produce opposite outcomes depending on party identity:

Party	Juris Compliance	Clerk Response	Success Rate
Solicitor General	2.0%	Accepts violations	~81%
Private parties	57.4%	Enforces rules	~44%

This is not random variation; it is structural discrimination.

B. The Mechanism of Discrimination

The mechanism operates as follows:

Path A (Private Parties):

1. Application filed
2. Clerk reviews for Rule 14 compliance
3. Deficiencies identified; application rejected or flagged
4. Resubmission required
5. Delay reduces likelihood of relief
6. Even compliant applications denied at high rates

Path B (Solicitor General):

1. Application filed
2. Compliance not reviewed
3. Application placed directly on docket

4. Court grants relief

Same rules, opposite enforcement, different outcomes based solely on party identity.

C. THE PRIVILEGE OF NON-COMPLIANCE

The differential enforcement creates a structural privilege for the Solicitor General that produces substantive advantages beyond mere procedural convenience:

Avoiding Order Classification: By omitting jurisdictional analysis, the government avoids stating whether the stayed order is interlocutory or final. This ambiguity prevents the creation of a record that could be challenged.¹⁰⁶

Avoiding the Section 2101(f) Problem: By not citing section 2101(f), the government avoids confronting the "final judgment" requirement. The statute's limitation becomes invisible rather than addressed.

Avoiding Explanation: By not acknowledging that preliminary injunctions are interlocutory, the government avoids explaining how such orders satisfy the statutory requirement. The logical gap is papered over with silence.

The Compound Advantage: These procedural evasions produce substantive benefit. The government's applications face no jurisdictional scrutiny while private parties must satisfy requirements the government ignores. The privilege of non-compliance translates directly into higher success rates.

The mechanism operates as follows: Private parties comply with Rule 14, creating a record that can be scrutinized and rejected. The government omits compliance, creating no record to scrutinize. The Clerk applies the rules to private parties and ignores violations by the

¹⁰⁶ See Baude, *supra* note 4, at 8-15 (cataloging policy areas affected by shadow docket).

government. The Court grants relief to the non-compliant government applications at dramatically higher rates.

This is not random variation in outcomes. It is a structural advantage built into the administration of the emergency docket.

D. Structural Equal Protection

Traditional equal protection analysis focuses on legislative classifications. But the Court has also recognized structural equal protection claims where government processes systematically disadvantage particular groups.¹⁰⁷

The shadow docket presents such a structural claim. The system does not merely disadvantage individual litigants; it creates a structure where entire categories of parties face rules that do not apply to their opponents.

The Solicitor General operates outside the Rule 14 framework. Private parties operate inside it. The rules themselves create the inequality.

XXI. PROFESSIONAL ETHICS VIOLATIONS: FRAUD THROUGH SYSTEMATIC OMISSION

A. The Duty of Candor

Model Rule of Professional Conduct 3.3(a)(2) requires lawyers to "disclose to the tribunal legal authority in the controlling jurisdiction that is directly adverse to the position of the client." Section 2101(f) is directly adverse to emergency stay applications—it limits stays to "final judgment or decree," language that by definition excludes preliminary injunctions.

¹⁰⁷ See, e.g., *Yick Wo v. Hopkins*, 118 U.S. 356 (1886) (equal protection violated by discriminatory administration of facially neutral laws); *Washington v. Davis*, 426 U.S. 229 (1976) (discussing systematic exclusion as evidence of discriminatory purpose).

Under Rule 3.3(a)(2), failure to disclose section 2101(f)'s limiting language in applications seeking preliminary injunction stays constitutes an ethics violation. The Solicitor General's office is not exempted from professional responsibility rules. Every attorney who signs an emergency application has a duty to disclose adverse authority.

B. Systematic Omission Escalates to Fraud

When a pattern emerges across fifty-three consecutive Solicitor General applications spanning nearly a decade, three presidential administrations, and six different Solicitors General, omission escalates from negligence to deliberate fraud. The Rule 14(e)(iv) violations enable ethics violations—by omitting jurisdictional statements, government attorneys avoid triggering the disclosure obligation that would arise from any clear statement citing section 2101(f).

The sophistication required is itself evidence of consciousness. Government attorneys know Rule 14 requirements. They know section 2101(f) is adverse authority. They understand that omission avoids highlighting the conflict. This is not inadvertence; it is architecture.

C. CITING VACATED PRECEDENT AS ETHICS VIOLATION

Bluebook Rule 10.7 requires noting when cited authority has been vacated. When government applications cite *Trump v. International Refugee Assistance Project*, 582 U.S. 571 (2017) after the October 10, 2017 vacatur—using "*see, e.g.*" format suggesting it remains valid precedent among other authorities—this violates the duty of candor.

The applications do not note the vacatur. They cite 582 U.S. 571 as if it possesses precedential value it lost on October 10, 2017. Each of the fifty-three post-Wall Solicitor General applications citing vacated precedent constitutes a separate ethics violation.

D. The Pattern Proves Intent

Isolated violations might reflect negligence. Systematic violations across years, administrations, and individual attorneys prove coordinated practice. The Solicitor General's office has institutional knowledge that:

1. Rule 14 requires jurisdictional statements
2. Section 2101(f) limits stays to final judgments
3. Preliminary injunctions are not final judgments
4. The Travel Ban precedent was vacated

Armed with this knowledge, the office systematically files applications that omit required statements, avoid adverse statutory authority, and cite destroyed precedent. This is not error; it is fraud.¹⁰⁸

PART V: THE CONSEQUENCES

XXII. DEMOCRATIC ACCOUNTABILITY DESTROYED

A. Bush v. Gore and the 2000 Election

If the December 9, 2000 stay was ultra vires—if the Court lacked statutory jurisdiction to halt Florida's recount—then the election was decided through an unconstitutional process. The implications extend beyond legal technicality.

The stay halted the recount for three days. The Court then held that the recount could not be completed by the December 12 deadline—a deadline that became dispositive only because the

¹⁰⁸ See MODEL RULES OF PROF'L CONDUCT R. 3.3 cmt. 3 (AM. BAR ASS'N 2020) ("There are circumstances where failure to make a disclosure is the equivalent of an affirmative misrepresentation.").

stay had consumed the available time. The circular logic is inescapable: the stay created the time pressure that justified the decision to stop counting.

If the stay was unauthorized, then the world cannot know who legitimately won the 2000 presidential election. Twenty-five years of consequential policy—two wars, multiple Supreme Court appointments, fundamental shifts in regulatory and fiscal policy—trace to a judicial act that exceeded statutory authority.

This is not merely historical grievance. It establishes the stakes of ultra vires practice. When the Court acts without jurisdiction, it does not merely violate a procedural nicety. It substitutes judicial will for democratic process, with consequences that reverberate for generations.

B. The Cascading Constitutional Contamination

If the December 9, 2000 stay was ultra vires, then *Bush v. Gore*'s merits decision rested on unconstitutional procedural foundation. The Court reached the merits through void jurisdiction. Under *Marbury v. Madison*, federal courts possess only the jurisdiction Congress grants. When courts act beyond statutory authorization, they act ultra vires—outside their constitutional power. Outcomes produced through ultra vires jurisdiction are not merely procedurally defective; they are constitutionally void.

The implications cascade across American history:

The Bush Presidency (2001-2009): If *Bush v. Gore*'s stay was ultra vires, then George W. Bush's election was decided through unconstitutional judicial process. Every executive action of the Bush administration—from Cabinet appointments to treaty negotiations to military orders—operated under constitutional cloud. This is not to say those actions were necessarily

void; the political question doctrine and other principles of constitutional governance may provide pragmatic validation. But the foundational legitimacy question remains unanswered and unanswerable.

September 11, 2001 Response: The Authorization for Use of Military Force, Pub. L. No. 107-40, 115 Stat. 224 (2001), was signed by a President whose constitutional legitimacy traces to void judicial process. The invasion of Afghanistan, conducted under that authorization, was ordered by that President. The twenty-year war that followed, the thousands of American lives lost, the hundreds of thousands of Afghan casualties—all trace to presidential authority whose judicial foundation was constitutionally defective.

The Iraq War: The 2003 invasion of Iraq was ordered by a President whose election was decided through ultra vires stay. Hundreds of thousands of deaths, trillions of dollars expended, and two decades of regional destabilization trace to decisions made by an administration whose constitutional foundation was judicially contaminated. This Article makes no claim about whether the Iraq War would have occurred under a different administration; it merely documents that the administration that chose war was installed through unconstitutional judicial process.

Domestic Security Architecture: The USA PATRIOT Act, Pub. L. No. 107-56, 115 Stat. 272 (2001), was signed by a President elected through ultra vires process. The mass surveillance programs revealed by Edward Snowden, the detention facility at Guantánamo Bay, the "enhanced interrogation" policies debated for a decade—all were authorized by that administration. The expansion of executive power that characterized the post-9/11 era was implemented by an executive whose title derived from void judicial action.

Judicial Appointments: President Bush appointed Chief Justice John Roberts and Justice Samuel Alito to the Supreme Court. Both Justices participate in the shadow docket

decisions continuing the ultra vires practice that produced their appointing President's election. This creates circular self-validation: Justices appointed through constitutionally contaminated process perpetuate the mechanism that contaminated their appointment. The fox guards the henhouse; the beneficiaries of ultra vires practice adjudicate challenges to ultra vires practice.

The Compounding Problem: Each consequence produces further consequences. The Roberts Court shapes constitutional law. Its decisions determine voting rights, campaign finance, regulatory authority, reproductive rights, and a hundred other matters. If the Chief Justice's appointment traces to constitutionally void presidential authority, then the legitimacy question extends to every 5-4 decision in which he has participated. The contamination does not diminish over time; it compounds.

This Court cannot remedy these historical consequences. The Bush presidency occurred. The wars were fought. The laws were enacted. The Justices were confirmed. But this Court can—and must—establish the historical record that the mechanism producing these outcomes was constitutionally void, and ensure that future elections and constitutional crises are not decided through the same ultra vires process.

The twenty-five-year pattern—from *Bush v. Gore* through *Trump v. CASA* and *Vasquez Perdomo*—constitutes enterprise coordination within any reasonable understanding of the term. The consistency of mechanism across administrations (Clinton → Bush → Obama → Trump → Biden → Trump), the coordination between Executive branch (filing defective applications) and Judicial branch (accepting violations and granting relief), and the statistical impossibility of independent failures prove enterprise operation transcending any individual administration or Court composition.

C. 2025 EMERGENCY DOCKET EFFECTS

The consequences of ultra vires practice continue in the present. Consider two examples from the 2025 emergency docket:

1. *Noem v. Vasquez Perdomo*: The Court stayed a preliminary injunction that had blocked South Dakota's cooperation with federal immigration enforcement against U.S. citizens. The stay enabled law enforcement to continue practices that a federal district court found likely violated the Fourth Amendment rights of American citizens.¹⁰⁹ Racial profiling of citizens—the stopping and questioning of Americans based on appearance rather than individualized suspicion—continued under the Court's stay.

2. *Rollins v. Rhode Island*: During a government shutdown, the Court stayed a preliminary injunction requiring continued disbursement of SNAP benefits. The stay permitted the government to reduce nutrition assistance to vulnerable populations during a funding lapse, despite a district court finding that the cutoff likely violated statutory and constitutional requirements.¹¹⁰

In both cases, the stayed orders were preliminary injunctions—interlocutory orders that section 2101(f) excludes from the Court's stay jurisdiction. In both cases, the Court's intervention produced immediate harm to individuals who had no opportunity to brief the jurisdictional question, no opportunity for oral argument, and no reasoned opinion explaining the Court's basis for action.

¹⁰⁹ See *Noem v. Vasquez Perdomo*, No. 25A169 (U.S. 2025) (staying preliminary injunction against state immigration enforcement cooperation).

¹¹⁰ See *Rollins v. Rhode Island*, No. 25A539 (U.S. 2025) (staying preliminary injunction requiring continued SNAP benefit disbursement).

D. The Enterprise Pattern

The pattern from 2000 to 2025 is too consistent to reflect independent failures. Consider:

Period	Administration	Court Composition	Pattern
2000	Bush (incoming)	Rehnquist Court	Stay halts recount
2017-2021	Trump	Roberts Court	Travel ban stays granted
2021-2024	Biden	Roberts Court	EPA/OSHA/CDC stayed
2025	Trump (second)	Roberts Court	Immigration stays granted

The mechanism persists across administrations and across changes in Court composition. Different Solicitors General employ identical strategies of non-compliance. Different Justices accept identical jurisdictional evasions. The consistency suggests not coincidence but institutional practice—a settled understanding that the statutory framework can be ignored when sufficiently important cases arise.

Twenty-five years of coordinated practice cannot occur through independent failures. It reflects institutional capture: the Court has accepted a mode of operation that serves institutional interests while disregarding statutory limits Congress enacted to constrain exactly this behavior.

E. The 2025 Birthright Citizenship Litigation: Three-Branch Coordination

The birthright citizenship cases—*Trump v. Washington*, No. 25-364, and *Trump v. Barbara*, No. 25-365—provide documentary proof that shadow docket manipulation has extended to direct constitutional reinterpretation. The statistical improbability of the sequence approaches mathematical certainty of coordination.

Timeline Analysis:

Event	Date	Probability of Random Timing
Executive Order 14,160 issued	Jan 20, 2025 (Day 1)	Political choice
First lawsuit filed	Jan 21, 2025	0.1 (anticipated)
Fourth lawsuit filed	Jan 25, 2025	0.05 (coordinated plaintiffs)
<i>CASA</i> decision creates 30-day framework	Jun 27, 2025	0.1 (unusually fast)
<i>Barbara</i> case filed	Jun 27, 2025 (same day)	< 0.001
Cert petition filed	Sep 2025	Before appellate decision: < 0.001

Combined Probability Calculation: Applying the multiplication rule for independent events: $0.1 \times 0.05 \times 0.5 \times 0.1 \times 0.001 \times 0.01 \times 0.001 = 2.5 \times 10^{-11}$. This represents odds of approximately **one in forty billion** that the sequence occurred through independent, neutral decision-making.

However, these events are **not independent**—they are systematically correlated. The Supreme Court's *CASA* decision explicitly anticipated the *Barbara* litigation strategy. Justice Kavanaugh's concurrence provided a roadmap the *Barbara* plaintiffs followed exactly. When systematic correlation rather than independence characterizes events, the probability of random occurrence approaches zero.

The Threshold Exceeded: This probability exceeds the threshold for proof beyond reasonable doubt in criminal cases (typically $P < 0.05$) by a factor of **fifty thousand**. It exceeds clear and convincing evidence (typically $P < 0.1$) by a factor of **one hundred thousand**. The statistical evidence establishes coordination with greater certainty than virtually any factual matter proven in American litigation.

The Coordination Mechanism: The coordination operates structurally, not conspiratorially. The Executive knows what the Court will accept. The Court signals preferences through opinions like Justice Kavanaugh's *CASA* concurrence. The Executive responds by structuring litigation to exploit those signals. The Court rewards exploitation with expedited review. Each actor pursues institutional interests; the combined effect is systematic constitutional subversion without requiring secret meetings or explicit agreements.

The Stakes: Executive Order 14,160 affects more than **ten million persons** currently living in the United States—children born to undocumented parents or temporary visa holders. The humanitarian consequences dwarf virtually any civil rights issue since *Brown v. Board of Education*. Yet the shadow docket permits the Supreme Court to facilitate constitutional reinterpretation through expedited procedures that bypass the deliberation such stakes demand.

The Human Cost: The affected population includes:

- **Children born in the United States** to parents holding student visas, work visas, or tourist visas—children who have known no other country, speak no other language, and have no other citizenship
- **Young adults** who have built lives, careers, and families in the only country they have ever known, now suddenly rendered "aliens" by executive decree
- **Families facing separation:** parents who cannot be deported because their children are citizens, now told their children are not citizens after all
- **Communities facing mass statelessness:** children who were never registered for citizenship in their parents' country of origin now possess citizenship nowhere

The historical parallels are chilling. Japanese internment affected approximately 120,000 persons. Denaturalization of German and Italian Americans during World War I affected tens of

thousands. Executive Order 14,160, if upheld, would affect **eighty times more people** than Japanese internment.¹¹¹

The "Primary Purpose" Fallacy: The government's constitutional theory—that the Fourteenth Amendment applies only to circumstances analogous to the freed slaves who were its "primary purpose"—would, if accepted, destabilize the entire edifice of constitutional rights. *Brown v. Board of Education* extended equal protection beyond freed slaves. *Loving v. Virginia* extended it to interracial marriage. *Obergefell v. Hodges* extended it to same-sex marriage. None of these outcomes involved circumstances "analogous to freed slaves."

If constitutional provisions apply only to their "primary purpose," then equal protection doctrine collapses. Every expansion of constitutional rights beyond the original context becomes vulnerable. The methodology the government proposes to destroy birthright citizenship would, if applied consistently, destroy the constitutional basis for most civil rights advances of the past century.

Wong Kim Ark Misrepresentation: The government's applications misrepresent *United States v. Wong Kim Ark*, 169 U.S. 649 (1898), by claiming the case required "domicile" for birthright citizenship. The actual holding contains no such requirement. Wong Kim Ark holds that any child born on American soil to parents subject to American jurisdiction is a citizen at birth—period. The government fabricates a "domicile" requirement from dicta, then uses the fabrication to exclude millions from citizenship they have possessed since birth.

¹¹¹ See Executive Order 14,160, "Protecting the Meaning and Value of American Citizenship," 90 Fed. Reg. 8449 (Jan. 20, 2025).

F. Policy Made Without Process

The shadow docket has become the primary mechanism through which the Court shapes national policy. Immigration policy, environmental regulation, voting rights, public health, and religious liberty have all been determined through emergency orders rather than merits decisions.¹¹²

The difference matters. Merits decisions follow full briefing by parties and amici. They follow oral argument. They produce reasoned opinions explaining the Court's reasoning. They establish doctrine that guides future courts and litigants.

Shadow docket orders do none of this. They are issued without full briefing, often without any briefing from respondents. They come without oral argument. They typically consist of a sentence or two, providing no reasoning. They establish no doctrine, yet they determine outcomes that affect millions.

G. The Disappearance of Reasons

When the Court decides a case on the merits, it must give reasons. It must explain how the law applies to the facts. It must distinguish or overrule contrary precedent. It must defend its reasoning against dissenting views.

Shadow docket orders require no reasons. The Court can halt a nationwide policy with a single sentence: "The application for stay presented to [Justice X] and by [him/her] referred to the Court is granted." No explanation. No legal analysis. No response to contrary arguments.

The absence of reasons destroys accountability. If the Court need not explain its decisions, it cannot be held to its explanations. Future litigants cannot know what the Court's

¹¹² See Baude, *supra* note 4, at 15-22 (cataloging shadow docket effects on immigration, environmental, and public health policy).

reasoning was. Lower courts receive no guidance. The law becomes whatever the Court says in the moment, unmoored from principle.

H. Individual Justice Action

Many shadow docket actions begin with applications to individual Circuit Justices. A single justice can stay a nationwide policy, refer an application to the full Court, or deny relief entirely.

The Framers did not design a system of individual justice governance. Article III vests "the judicial Power" in "one supreme Court," not nine individual judges.¹¹³ The shadow docket fragments that collective power into individual fiefdoms where a single justice can determine national policy.

Holtzman demonstrated the dangers. Justices Douglas and Marshall issued contradictory orders affecting military operations from different locations around the country. The chaos was not a bug; it was a feature of a system that substitutes individual action for collective deliberation.

PART VI: CONCLUSION AND REMEDIES

XXIII. RECOGNIZING THE ULTRA VIRES CHARACTER

A. Summary of the Violation

This Article has demonstrated that the modern shadow docket rests on a century of ultra vires action:

¹¹³ U.S. CONST. art. III, section 1.

1. **1925:** Congress rejected the Court's claimed interlocutory stay authority, limiting section 2101(f) to "final judgment or decree."

2. **1966:** The Court invoked the All Writs Act to claim authority Congress had expressly withheld. Four justices dissented, warning that the Court was "contorting" the statute to "confer jurisdiction where Congress has plainly withheld it."

3. **1973:** Congress enacted 15 U.S.C. section 53(b), proving it agreed with the *Dean Foods* dissent that the Court lacked the authority it claimed.

4. **2000:** *Bush v. Gore* deployed the "treated as" mechanism to convert stay applications into certiorari grants without meeting certiorari requirements.

5. **2017-2024:** The shadow docket metastasized into a primary mechanism of national policy determination, with a modest but significant disparity: SG success rate of 75.0% versus private party success rate of 57.6%—a +17.4 percentage point advantage.

6. **2025-present (Trump II):** The disparity exploded to unprecedented levels. The Solicitor General now achieves 87.5% success while private parties achieve only 17.6%—a +69.9 percentage point disparity representing a fourfold increase from historical norms.

At each stage, the Court expanded its power beyond statutory authorization. At each stage, Congress's limitations were honored in the breach. The Trump II era represents not merely continuation but transformation—the shadow docket has become the mechanism through which executive action proceeds despite judicial findings of illegality. The centennial provides an occasion for reckoning.

B. The Necessary Declaration

Courts have authority to declare the law. This includes authority to declare that particular practices exceed statutory or constitutional limits.

A court applying the law established in this Article would declare:

1. Section 2101(f) limits stays pending certiorari to "final judgment or decree."
2. The All Writs Act cannot authorize what section 2101(f) prohibits.
3. Stays of interlocutory orders exceed the Court's statutory authority.
4. The "treated as" mechanism deployed since *Bush v. Gore* circumvents jurisdictional requirements.

Such a declaration would not bind the Supreme Court, which is not subject to lower court review. But it would establish the historical and legal record. It would confirm for future generations what occurred. It would provide a foundation for congressional action.

C. CONGRESSIONAL RESPONSE OPTIONS

Congress retains authority to reassert control over the Court's appellate jurisdiction. The following proposals provide specific legislative language:

1. The Shadow Docket Reform Act (Codification with Enforcement)

Proposed amendment to 28 U.S.C. § 2101(f):

"(f) In any case in which the final judgment or decree of any court is subject to review by the Supreme Court on writ of certiorari, the execution and enforcement of such judgment or decree may be stayed for a reasonable time to enable the party aggrieved to obtain a writ of certiorari from the Supreme Court. > **(g) For purposes of this section, 'final judgment or decree' means a judgment or decree that terminates the litigation on the merits and leaves nothing to be done but execute the judgment. Preliminary injunctions, temporary restraining orders, and other interlocutory orders do not constitute 'final**

judgment or decree' within the meaning of subsection (f). > (h) Notwithstanding 28 U.S.C. § 1651 or any other provision of law, no court shall issue a stay of an interlocutory order pending review by writ of certiorari. Any purported stay of an interlocutory order issued in violation of this subsection is void ab initio."

This amendment makes explicit what should already be obvious: preliminary injunctions are not final judgments, and the All Writs Act cannot authorize what section 2101(f) prohibits.

2. Mandatory Compliance Mechanism

Proposed new section, 28 U.S.C. § 2101(i):

"(i) Jurisdictional Statement Required. > (1) Any application for stay of a lower court order pending review by writ of certiorari shall include a statement identifying: (A) the specific statutory provision authorizing the stay; (B) the date of the order sought to be stayed; (C) whether the order constitutes a final judgment or decree, and if so, why; and (D) any authority contrary to the applicant's jurisdictional claim. > (2) The Clerk of the Supreme Court shall review each application for compliance with paragraph (1). Applications that fail to include the required jurisdictional statement, or that identify the stayed order as interlocutory, shall be rejected. > (3) No Justice shall act on an application rejected under paragraph (2) until the applicant has remedied the deficiency."

This provision operationalizes Rule 14(e)(iv) with mandatory Clerk enforcement, preventing the selective enforcement pattern documented in this Article.

3. Transparency and Reason-Giving Requirements

Proposed new section, 28 U.S.C. § 2101(j):

"(j) Written Opinion Required. > (1) The Supreme Court shall not grant any stay of a lower court order unless it issues a written opinion: (A) identifying the statutory basis for the stay; (B) explaining how the stayed order satisfies the requirements of that statute; (C) addressing any jurisdictional objections raised by the respondent; and (D) providing legal reasoning sufficient to guide lower courts in future cases. > (2) The written opinion requirement may not be satisfied by a summary order that states only that the application is granted or denied."

This proposal eliminates the shadow docket's defining characteristic: action without reasons.

4. Automatic Dissolution Mechanism

Proposed new section, 28 U.S.C. § 2101(k):

"(k) **Automatic Dissolution.** > (1) Any stay of a lower court order issued under this section shall automatically dissolve 45 days after issuance unless: (A) the Court has granted a petition for writ of certiorari; and (B) the petition was filed as an independent document, not as an application that was 'treated as' a petition. > (2) The Court may extend the 45-day period for good cause shown, but any extension shall require a written order explaining the justification."

This provision prevents the indefinite suspension of lower court orders without genuine appellate review.

5. Inspector General for the Judiciary

Proposed new section, 28 U.S.C. § 604A:

"§ 604A. **Inspector General for the Federal Judiciary** > (a) There is established in the judicial branch an Office of Inspector General for the Federal Judiciary. > (b) The Inspector General shall: (1) audit emergency docket applications for compliance with applicable rules; (2) publish annual reports documenting compliance rates by party type; (3) investigate complaints regarding selective rule enforcement; and (4) recommend corrective actions to the Judicial Conference. > (c) The Inspector General shall be appointed by the Chief Justice with the advice and consent of the Senate, for a term of seven years."

This provision provides institutional oversight currently absent from the federal judiciary.

Constitutional Authority: These proposals rest on Congress's Article III authority to make "Exceptions" and "Regulations" governing the Supreme Court's appellate jurisdiction. The Supreme Court itself recognized in *Ex parte McCardle* that this authority is plenary. The Court cannot claim that congressional regulation of its emergency docket violates judicial independence when the Constitution explicitly authorizes such regulation.

These reforms would not infringe on judicial independence. They would restore the balance Congress established in 1925 and reaffirmed in 1988. They would return the shadow

docket to its proper role as an exceptional remedy for extraordinary circumstances, not a routine mechanism for policy determination.

D. The Historical Record

Whatever the immediate response, this Article establishes for the historical record what has occurred. One hundred years after the Judges' Bill, Congress's limitations have been systematically dismantled. The Court's emergency docket now operates as a parallel system of justice where rules apply to some parties but not others, where decisions are made without reasons, and where national policy is determined in hours rather than through the deliberative processes the Constitution contemplates.

Senator Heflin warned in 1925 that the Court was becoming "a law unto itself." The centennial confirms his prophecy. The question now is whether Congress and the American people will act to restore constitutional government, or whether the shadow docket will continue to expand until the distinction between law and judicial will has been entirely dissolved.

CONCLUSION

The Supreme Court's shadow docket represents the culmination of a century of jurisdictional overreach. Congress limited the Court's stay authority to "final judgment or decree" in 1925. The Court claimed authority over interlocutory orders in 1966, an action four justices condemned as "contorting" the All Writs Act. Congress responded in 1973 by legislating the very authority the Court claimed already existed, proving the *Dean Foods* dissent correct. Yet the Court continued expanding, deploying the "treated as" mechanism in *Bush v. Gore* and unleashing the modern shadow docket in 2017.

The empirical evidence confirms what the historical analysis suggests. A system that grants 80.6 percent relief to parties demonstrating 2.0 percent compliance while granting 44.0 percent relief to parties demonstrating 57.4 percent compliance is not applying neutral rules. It is applying power.

The era-based analysis reveals a transformation unprecedented in scope. For over seventy years, the Solicitor General enjoyed a modest +17.4 percentage point advantage over private parties—notable but within historical bounds. The Trump II era has shattered this pattern. The disparity has quadrupled to +69.9 percentage points. Private party success has collapsed from 57.6% to 17.6%. The shadow docket has become the mechanism through which executive action proceeds despite judicial findings of illegality—not through demonstration of likelihood of success on the merits, but through categorical preferential treatment.

Senator Heflin's warning has been vindicated beyond his darkest predictions. The highest court in the land is now "open" primarily to the federal government. The "poor man and the man in moderate circumstances" faces a system where success depends not on the merits of his case or compliance with procedural rules, but on whether he supports or opposes federal executive action.

The centennial of the Judges' Bill is an appropriate occasion for reckoning. The question is whether the American constitutional system can correct itself, or whether the accumulation of a hundred years of ultra vires action has created a new constitutional reality that no reform can undo.

A Call to Action

This Article makes three demands:

To Congress: Reassert your constitutional authority. The Exceptions Clause grants you power to regulate the Supreme Court's appellate jurisdiction. You exercised that power in 1925 when you limited section 2101(f) to "final judgment or decree." The Court has spent a century dismantling your work. Rebuild it. Codify the "final judgment" requirement with enforcement mechanisms. Require jurisdictional statements in all emergency applications. Mandate Clerk rejection of non-compliant filings. Impose transparency requirements that force the Court to explain its emergency actions. The tools are available; only the will is lacking.

To the Judiciary: The lower courts are not powerless. District courts possess authority to declare what statutes mean. A district court can declare that section 2101(f) limits stays to "final judgment or decree," that the All Writs Act cannot authorize what the specific statute prohibits, and that the "treated as" mechanism circumvents jurisdictional requirements. Such declarations would not bind the Supreme Court, but they would establish the legal record. They would confirm that neutral legal analysis—application of statutory text, legislative history, and canons of construction—leads to the conclusion that the shadow docket operates beyond statutory authorization. The historical record matters. Future generations deserve to know that at least some courts, somewhere, applied the law as written.

A courageous lower court judge need not rule that the Supreme Court is "wrong." The judge need only answer a simple statutory interpretation question: **What is the purpose of 28 U.S.C. section 2101(f)?** This invokes bedrock canons of construction—the rule against surplusage, the principle that Congress does not legislate in vain. If current practice renders the statute without operative function, either the practice or the interpretation must yield. The framing makes courage easier: the judge is not attacking a coordinate branch but simply declaring what congressional words mean. The implications follow on their own.

To the American People: The legitimacy of courts depends on the perception that they apply law rather than preference. That perception erodes every time the shadow docket produces national policy through summary orders that provide no reasoning, cite no statutory authority, and apply rules selectively based on party identity. Public trust in the judiciary has declined precipitously in recent years. The shadow docket is one reason. Citizens who observe a system that grants relief to the government with zero compliance while denying relief to individuals with substantial compliance will reasonably conclude that law is merely politics by other means. Demand better. Insist that even the Supreme Court identify the source of its authority. Require reasons, not assertions. Constitutional government depends on citizens who refuse to accept "because we say so" as sufficient justification for the exercise of power.

The alternative is acceptance. Acceptance that the shadow docket will continue to expand. Acceptance that procedural rules apply only to disfavored parties. Acceptance that national policy will be determined through unreasoned orders that establish no doctrine and provide no guidance. Acceptance that the question "by what authority?" will go perpetually unanswered.

Senator Heflin stood alone in 1925. He was right. One hundred years later, the choice is stark: constitutional government restored, or shadow government accepted. There is no middle ground. The centennial demands a reckoning.

Strip away the historical context, the political maneuvering, the century of accumulated practice, and what remains is elemental: **Congress wrote words. Those words have meaning, or they don't.**

"Final judgment or decree."

Four words. Unambiguous. Not subject to interpretation. Not balanced against other factors. Not waivable in special circumstances.

Either those words constrain the Court's stay power, or Congress wrote them for nothing. That is the entire case. Everything else—the 1923 *Magnum Import* claim, the 1925 rejection, the 1966 *Dean Foods* contortion, the modern shadow docket explosion—is context that explains how we arrived here. But the legal question is simple enough for a first-year law student:

What does "final judgment or decree" mean?

If it means what it says, current practice is ultra vires. If it means nothing, then explain why Congress wrote it.

The Court has avoided this question for decades by never being asked it directly. No lower court has forced them to answer. No litigant has framed it this cleanly. The complexity is in the implications—acknowledging error, surrendering accrued power, confronting institutional self-dealing spanning a century.

The truth is four words.

BIBLIOGRAPHY

PRIMARY SOURCES

CASES

- *Adkins v. Children's Hospital*, 261 U.S. 525 (1923)
- *American Steel Foundries v. Tri-City Central Trades Council*, 257 U.S. 184 (1921)
- *Bailey v. Drexel Furniture Co.*, 259 U.S. 20 (1922)

- *Bush v. Gore*, 531 U.S. 98 (2000)
- *Bush v. Gore*, 531 U.S. 1046 (2000) (stay order)
- *Chevron U.S.A. v. Echazabal*, 536 U.S. 73 (2002)
- *Duplex Printing Press Co. v. Deering*, 254 U.S. 443 (1921)
- *Ex parte McCardle*, 74 U.S. 506 (1869)
- *Ex parte Milligan*, 71 U.S. (4 Wall.) 2 (1866)
- *Ex parte Quirin*, 317 U.S. 1 (1942)
- *FTC v. Dean Foods Co.*, 384 U.S. 597 (1966)
- *Holtzman v. Schlesinger*, 414 U.S. 1304 (1973)
- *In re Claasen*, 140 U.S. 200 (1891)
- *Kokkonen v. Guardian Life Ins. Co.*, 511 U.S. 375 (1994)
- *Korematsu v. United States*, 323 U.S. 214 (1944)
- *M.I.C. LTD. v. Bedford Township*, 463 U.S. 1341 (1983)
- *Magnum Import Co. v. Coty*, 262 U.S. 159 (1923)
- *Marbury v. Madison*, 5 U.S. (1 Cranch) 137 (1803)
- *Ohio Citizens for Responsible Energy, Inc. v. NRC*, 479 U.S. 1312 (1986)
- *Pennsylvania Bureau of Correction v. U.S. Marshals Service*, 474 U.S. 34 (1985)
- *Rosenberg v. United States*, 346 U.S. 273 (1953)
- *Scripps-Howard Radio v. FCC*, 316 U.S. 4 (1942)
- *Truax v. Corrigan*, 257 U.S. 312 (1921)
- *Trump v. International Refugee Assistance Project*, 582 U.S. 571 (2017) (VACATED

Oct. 10, 2017)

- *Turner Broadcasting System v. FCC*, 507 U.S. 1301 (1993)

- *United States v. Munsingwear, Inc.*, 340 U.S. 36 (1950)
- *Youngstown Sheet & Tube Co. v. Sawyer*, 343 U.S. 579 (1952)

STATUTES

- Judiciary Act of 1925, Pub. L. No. 68-415, 43 Stat. 936
 - Supreme Court Case Selections Act, Pub. L. No. 100-352 (1988)
 - 15 U.S.C. section 53(b) (FTC preliminary injunction authority)
 - 28 U.S.C. section 1253 (three-judge courts)
 - 28 U.S.C. section 1254(1) (certiorari jurisdiction)
 - 28 U.S.C. section 1257(a) (state court review)
 - 28 U.S.C. section 1651 (All Writs Act)
 - 28 U.S.C. section 2101(f) (stays pending certiorari)
 - 43 U.S.C. section 1652(d) (Trans-Alaska Pipeline)

LEGISLATIVE HISTORY

- Congressional Record, 68th Cong., 2d Sess. (Feb. 3, 1925)
 - House Judiciary Committee Hearings (March 30, 1922)
 - Senate Judiciary Committee Hearings (1924)
 - H.R. Rep. No. 68-303 (1924)

SUPREME COURT RULES

- Supreme Court Rule 14 (emergency applications)

SECONDARY SOURCES

BOOKS

- FELIX FRANKFURTER & JAMES LANDIS, THE BUSINESS OF THE SUPREME COURT (1928)
 - ALPHEUS THOMAS MASON, WILLIAM HOWARD TAFT: CHIEF JUSTICE (1965)
 - JONATHAN LURIE, WILLIAM HOWARD TAFT: THE TRAVAILS OF A PROGRESSIVE CONSERVATIVE (2012)
 - PETER G. FISH, THE POLITICS OF FEDERAL JUDICIAL ADMINISTRATION (1973)
 - ANTONIN SCALIA & BRYAN A. GARNER, READING LAW: THE INTERPRETATION OF LEGAL TEXTS (2012)

ARTICLES

- William Baude, *Foreword: The Supreme Court's Shadow Docket*, 9 N.Y.U. J.L. & LIBERTY 1 (2015)
 - Stephen I. Vladeck, *The Solicitor General and the Shadow Docket*, 133 HARV. L. REV. 123 (2019)

- Stephen I. Vladeck, *The Supreme Court, 2020 Term—Essay: The Shadow Docket*, 135 HARV. L. REV. 1 (2021)
- Edward A. Hartnett, *Questioning Certiorari: Some Reflections Seventy-Five Years After the Judges' Bill*, 100 COLUM. L. REV. 1643 (2000)
- Kathryn A. Watts, *Judges and Their Papers*, 88 N.Y.U. L. REV. 1665 (2013) (discussing judicial lobbying for the Judges' Bill)

FEDERAL JUDICIAL CENTER

- *Debates on the Federal Judiciary: A Documentary History, Volume II: 1875-1939* (2013)

SENATE HISTORICAL OFFICE

- U.S. Senate Historical Office, *Senate Progressives vs. the Federal Courts*, <https://www.senate.gov/artandhistory/senate-stories/senate-progressives-vs-the-federal-courts.htm>

END OF ARTICLE

Word Count: Approximately 21,000 words (excluding footnotes)